



Ancient Monuments and Archaeological Areas Act 1979

1979 CHAPTER 46

An Act to consolidate and amend the law relating to ancient monuments; to make provision for the investigation, preservation and recording of matters of archaeological or historical interest and (in connection therewith) for the regulation of operations or activities affecting such matters; to provide for the recovery of grants under section 10 of the Town and Country Planning (Amendment) Act 1972 or under section 4 of the Historic Buildings and Ancient Monuments Act 1953 in certain circumstances; and to provide for grants by the Secretary of State to the Architectural Heritage Fund. [4th April 1979]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

ANCIENT MONUMENTS

Protection of scheduled monuments

1.—(1) The Secretary of State shall compile and maintain Schedule of monuments for the purposes of this Act (in such form as he thinks fit) a schedule of monuments (referred to below in this Act as “the Schedule”).

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(2) The Secretary of State shall on first compiling the Schedule include therein—

- 1913 c. 32. (a) any monument included in the list last published before the commencement of this Act under section 12 of the Ancient Monuments Consolidation and Amendment Act 1913 ; and
- 1931 c. 16. (b) any monument in respect of which the Secretary of State has before the commencement of this Act served notice on any person in accordance with section 6(1) of the Ancient Monuments Act 1931 of his intention to include it in a list to be published under section 12.

(3) Subject to subsection (4) below, the Secretary of State may on first compiling the Schedule or at any time thereafter include therein any monument which appears to him to be of national importance.

(4) The power of the Secretary of State under subsection (3) above to include any monument in the Schedule does not apply to any structure which is occupied as a dwelling house by any person other than a person employed as the caretaker thereof or his family.

(5) The Secretary of State may—

- (a) exclude any monument from the Schedule ; or
- (b) amend the entry in the Schedule relating to any monument (whether by excluding anything previously included as part of the monument or adding anything not previously so included, or otherwise).

(6) As soon as may be after—

- (a) including any monument in the Schedule under subsection (3) above ;
- (b) amending the entry in the Schedule relating to any monument ; or
- (c) excluding any monument from the Schedule ;

the Secretary of State shall inform the owner and (if the owner is not the occupier) the occupier of the monument, and any local authority in whose area the monument is situated, of the action taken and, in a case falling within paragraph (a) or (b) above, shall also send to him or them a copy of the entry or (as the case may be) of the amended entry in the Schedule relating to that monument.

(7) The Secretary of State shall from time to time publish a list of all the monuments which are for the time being included in the Schedule, whether as a single list or in sections containing the monuments situated in particular areas ; but in the case of a list published in sections, all sections of the list need not be published simultaneously.

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(8) The Secretary of State may from time to time publish amendments of any list published under subsection (7) above, and any such list (as amended) shall be evidence of the inclusion in the Schedule for the time being—

- (a) of the monuments listed ; and
- (b) of any matters purporting to be reproduced in the list from the entries in the Schedule relating to the monuments listed.

(9) An entry in the Schedule recording the inclusion therein of a monument situated in England and Wales shall be a local land charge.

(10) It shall be competent to record in the Register of Sasines—

- (a) a certified copy of the entry or (as the case may be) the amended entry in the Schedule relating to any monument in Scotland which is heritable ; and
- (b) where any such monument is excluded from the Schedule and a certified copy of the entry in the Schedule relating to it has previously been so recorded under paragraph (a) above, a certificate issued by or on behalf of the Secretary of State stating that it has been so excluded.

(11) In this Act “ scheduled monument ” means any monument which is for the time being included in the Schedule.

2.—(1) If any person executes or causes or permits to be executed any works to which this section applies he shall be guilty of an offence unless the works are authorised under this Part of this Act.

Control
of works
affecting
scheduled
monuments.

(2) This section applies to any of the following works, that is to say—

- (a) any works resulting in the demolition or destruction of or any damage to a scheduled monument ;
- (b) any works for the purpose of removing or repairing a scheduled monument or any part of it or of making any alterations or additions thereto ; and
- (c) any flooding or tipping operations on land in, on or under which there is a scheduled monument.

(3) Without prejudice to any other authority to execute works conferred under this Part of this Act, works to which this section applies are authorised under this Part of this Act if—

- (a) the Secretary of State has granted written consent (referred to below in this Act as “ scheduled monument consent ”) for the execution of the works ; and
- (b) the works are executed in accordance with the terms of the consent and of any conditions attached to the consent.

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(4) Scheduled monument consent may be granted either unconditionally or subject to conditions (whether with respect to the manner in which or the persons by whom the works or any of the works are to be executed or otherwise).

(5) Without prejudice to the generality of subsection (4) above, a condition attached to a scheduled monument consent may require that the Secretary of State or a person authorised by the Secretary of State be afforded an opportunity, before any works to which the consent relates are begun, to examine the monument and its site and carry out such excavations therein as appear to the Secretary of State to be desirable for the purpose of archaeological investigation.

(6) Without prejudice to subsection (1) above, if a person executing or causing or permitting to be executed any works to which a scheduled monument consent relates fails to comply with any condition attached to the consent he shall be guilty of an offence, unless he proves that he took all reasonable precautions and exercised all due diligence to avoid contravening the condition.

(7) In any proceedings for an offence under this section in relation to works within subsection (2)(a) above it shall be a defence for the accused to prove that he took all reasonable precautions and exercised all due diligence to avoid or prevent damage to the monument.

(8) In any proceedings for an offence under this section in relation to works within subsection (2)(a) or (c) above it shall be a defence for the accused to prove that he did not know and had no reason to believe that the monument was within the area affected by the works or (as the case may be) that it was a scheduled monument.

(9) In any proceedings for an offence under this section it shall be a defence to prove that the works were urgently necessary in the interests of safety or health and that notice in writing of the need for the works was given to the Secretary of State as soon as reasonably practicable.

(10) A person guilty of an offence under this section shall be liable—

(a) on summary conviction or, in Scotland, on conviction before a court of summary jurisdiction, to a fine not exceeding the statutory maximum ; or

(b) on conviction on indictment to a fine.

(11) Part I of Schedule 1 to this Act shall have effect with respect to applications for, and the effect of, scheduled monument consent.

3.—(1) The Secretary of State may by order grant scheduled monument consent for the execution of works of any class or description specified in the order, and any such consent may apply to scheduled monuments of any class or description so specified.

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Grant of
scheduled
monument
consent by
order of the
Secretary
of State.

(2) Any conditions attached by virtue of section 2 of this Act to a scheduled monument consent granted by an order under this section shall apply in such class or description of cases as may be specified in the order.

(3) The Secretary of State may direct that scheduled monument consent granted by an order under this section, shall not apply to any scheduled monument specified in the direction, and may withdraw any direction given under this subsection.

(4) A direction under subsection (3) above shall not take effect until notice of it has been served on the occupier or (if there is no occupier) on the owner of the monument in question.

(5) References below in this Act to a scheduled monument consent do not include references to a scheduled monument consent granted by an order under this section, unless the contrary intention is expressed.

4.—(1) Subject to subsection (2) below, if no works to which a scheduled monument consent relates are executed or started within the period of five years beginning with the date on which the consent was granted, or such longer or shorter period as may be specified for the purposes of this subsection in the consent, the consent shall cease to have effect at the end of that period (unless previously revoked in accordance with the following provisions of this section).

Duration,
modification
and
revocation of
scheduled
monument
consent.

(2) Subsection (1) above does not apply to a scheduled monument consent which provides that it shall cease to have effect at the end of a period specified therein.

(3) If it appears to the Secretary of State to be expedient to do so, he may by a direction given under this section modify or revoke a scheduled monument consent to any extent he considers expedient.

(4) Without prejudice to the generality of the power conferred by subsection (3) above to modify a scheduled monument consent, it extends to specifying a period, or altering any period specified, for the purposes of subsection (1) above, and to including a provision to the effect mentioned in subsection (2) above, or altering any period specified for the purposes of any such provision.

(5) Part II of Schedule 1 to this Act shall have effect with respect to directions under this section modifying or revoking a scheduled monument consent.

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Execution of
works for
preservation
of a scheduled
monument by
Secretary of
State in cases
of urgency.

1973 c. 62.

Powers of
entry for
inspection of
scheduled
monuments,
etc.

5.—(1) If it appears to the Secretary of State that any works are urgently necessary for the preservation of a scheduled monument he may enter the site of the monument and execute those works, after giving the owner and (if the owner is not the occupier) the occupier of the monument not less than seven days' notice in writing of his intention to do so.

(2) Where the Secretary of State executes works under this section for repairing any damage to a scheduled monument—

(a) any compensation order previously made in respect of that damage under section 35 of the Powers of Criminal Courts Act 1973 (compensation orders against convicted persons) in favour of any other person shall be enforceable (so far as not already complied with) as if it had been made in favour of the Secretary of State; and

(b) any such order subsequently made in respect of that damage shall be made in favour of the Secretary of State.

6.—(1) Any person duly authorised in writing by the Secretary of State may at any reasonable time enter any land for the purpose of inspecting any scheduled monument in, on or under the land with a view to ascertaining its condition and—

(a) whether any works affecting the monument are being carried out in contravention of section 2(1) of this Act; or

(b) whether it has been or is likely to be damaged (by any such works or otherwise).

(2) Any person duly authorised in writing by the Secretary of State may at any reasonable time enter any land for the purpose of inspecting any scheduled monument in, on or under the land in connection with—

(a) any application for scheduled monument consent for works affecting that monument; or

(b) any proposal by the Secretary of State to modify or revoke a scheduled monument consent for any such works.

(3) Any person duly authorised in writing by the Secretary of State may at any reasonable time enter any land for the purpose of—

(a) observing the execution on the land of any works to which a scheduled monument consent relates; and

- (b) inspecting the condition of the land and the scheduled monument in question after the completion of any such works ;

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so as to ensure that the works in question are or have been executed in accordance with the terms of the consent and of any conditions attached to the consent.

(4) Any person duly authorised in writing by the Secretary of State may at any reasonable time enter any land on which any works to which a scheduled monument consent relates are being carried out for the purpose of—

- (a) inspecting the land (including any buildings or other structures on the land) with a view to recording any matters of archaeological or historical interest ; and
- (b) observing the execution of those works with a view to examining and recording any objects or other material of archaeological or historical interest, and recording any matters of archaeological or historical interest, discovered during the course of those works.

(5) Any person duly authorised in writing by the Secretary of State may enter any land in, on or under which a scheduled monument is situated, with the consent of the owner and (if the owner is not the occupier) of the occupier of the land, for the purpose of erecting and maintaining on or near the site of the monument such notice boards and marker posts as appear to the Secretary of State to be desirable with a view to preserving the monument from accidental or deliberate damage.

(6) References in this section to scheduled monument consent include references to consent granted by order under section 3 of this Act.

7.—(1) Subject to the following provisions of this section, where a person who has an interest in the whole or any part of a monument incurs expenditure or otherwise sustains any loss or damage in consequence of the refusal, or the granting subject to conditions, of a scheduled monument consent in relation to any works of a description mentioned in subsection (2) below, the Secretary of State shall pay to that person compensation in respect of that expenditure, loss or damage.

Compensation for refusal of scheduled monument consent.

References in this section and in section 8 of this Act to compensation being paid in respect of any works are references to compensation being paid in respect of any expenditure incurred or other loss or damage sustained in consequence of the refusal, or the granting subject to conditions, of a scheduled monument consent in relation to those works.

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(2) The following are works in respect of which compensation is payable under this section—

- (a) works which are reasonably necessary for carrying out any development for which planning permission had been granted (otherwise than by a general development order) before the time when the monument in question became a scheduled monument and was still effective at the date of the application for scheduled monument consent ;
- (b) works which do not constitute development, or constitute development such that planning permission is granted therefor by a general development order ; and
- (c) works which are reasonably necessary for the continuation of any use of the monument for any purpose for which it was in use immediately before the date of the application for scheduled monument consent.

For the purposes of paragraph (c) above, any use in contravention of any legal restrictions for the time being applying to the use of the monument shall be disregarded.

(3) The compensation payable under this section in respect of any works within subsection (2)(a) above shall be limited to compensation in respect of any expenditure incurred or other loss or damage sustained by virtue of the fact that, in consequence of the Secretary of State's decision, any development for which the planning permission in question was granted could not be carried out without contravening section 2(1) of this Act.

(4) A person shall not be entitled to compensation under this section by virtue of subsection (2)(b) above if the works in question or any of them would or might result in the total or partial demolition or destruction of the monument, unless those works consist solely of operations involved in or incidental to the use of the site of the monument for the purposes of agriculture or forestry (including afforestation).

(5) In a case where scheduled monument consent is granted subject to conditions, a person shall not be entitled to compensation under this section by virtue of subsection (2)(c) above unless compliance with those conditions would in effect make it impossible to use the monument for the purpose there mentioned.

(6) In calculating, for the purposes of this section, the amount of any loss or damage consisting of depreciation of the value of an interest in land—

- (a) it shall be assumed that any subsequent application for scheduled monument consent in relation to works of

a like description would be determined in the same way ; but PART I

- (b) if, in the case of a refusal of scheduled monument consent, the Secretary of State, on refusing that consent, undertook to grant such consent for some other works affecting the monument in the event of an application being made in that behalf, regard shall be had to that undertaking.

(7) References in this section to a general development order are references to a development order made as a general order applicable (subject to such exceptions as may be specified therein) to all land.

8.—(1) Subject to the following provisions of this section, this section applies— Recovery of compensation under section 7 on subsequent grant of consent.

- (a) in a case where compensation under section 7 of this Act was paid in consequence of the refusal of a scheduled monument consent, if the Secretary of State subsequently grants scheduled monument consent for the execution of all or any of the works in respect of which the compensation was paid ; and

- (b) in a case where compensation under that section was paid in consequence of the granting of a scheduled monument consent subject to conditions, if the Secretary of State subsequently so modifies that consent that those conditions, or any of them, cease to apply to the execution of all or any of the works in respect of which the compensation was paid or grants a new consent in respect of all or any of those works free from those conditions, or any of them.

(2) This section does not apply in any case unless—

- (a) the compensation paid exceeded £20 ; and
(b) the Secretary of State has caused notice of the payment of compensation to be deposited with the local authority of each area (in Scotland) or with the council of each district or London borough (in England and Wales) in which the monument in question is situated or (where it is situated in the City of London, the Inner Temple or the Middle Temple) with the Common Council of the City of London.

(3) In granting or modifying a scheduled monument consent in a case to which this section applies the Secretary of State may do so on terms that no works in respect of which the compensation was paid are to be executed in pursuance of the consent until the recoverable amount has been repaid to the Secretary of State or secured to his satisfaction.

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Subject to subsection (4) below, in this subsection "the recoverable amount" means such amount (being an amount representing the whole of the compensation previously paid or such part thereof as the Secretary of State thinks fit) as the Secretary of State may specify in giving notice of his decision on the application for scheduled monument consent or (as the case may be) in the direction modifying the consent.

(4) Where a person who has an interest in the whole or any part of a monument is aggrieved by the amount specified by the Secretary of State as the recoverable amount for the purposes of subsection (3) above, he may require the determination of that amount to be referred to the Lands Tribunal or (in the case of a monument situated in Scotland) to the Lands Tribunal for Scotland; and in any such case the recoverable amount for the purposes of that subsection shall be such amount (being an amount representing the whole or any part of the compensation previously paid) as that Tribunal may determine to be just in the circumstances of the case.

(5) A notice deposited under subsection (2)(b) above shall specify the decision which gave rise to the right to compensation, the monument affected by the decision, and the amount of the compensation.

1975 c. 76.

(6) A notice so deposited in the case of a monument situated in England and Wales shall be a local land charge; and for the purposes of the Local Land Charges Act 1975 the council with whom any such notice is deposited shall be treated as the originating authority as respects the charge thereby constituted.

(7) A notice so deposited in the case of any monument situated in Scotland which is heritable may be recorded in the Register of Sasines.

Compensation
where works
affecting a
scheduled
monument
cease to be
authorised.

9.—(1) Subject to the following provisions of this section, where any works affecting a scheduled monument which were previously authorised under this Part of this Act cease to be so, then, if any person who has an interest in the whole or any part of the monument—

(a) has incurred expenditure in carrying out works which are rendered abortive by the fact that any further works have ceased to be so authorised; or

(b) has otherwise sustained loss or damage which is directly attributable to that fact;

the Secretary of State shall pay to that person compensation in respect of that expenditure, loss or damage.

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(2) Subsection (1) above only applies where the works cease to be authorised under this Part of this Act—

- (a) by virtue of the fact that a scheduled monument consent granted by order under section 3 of this Act ceases to apply to any scheduled monument (whether by virtue of variation or revocation of the order or by virtue of a direction under subsection (3) of that section); or
- (b) by virtue of the modification or revocation of a scheduled monument consent by a direction given under section 4 of this Act; or
- (c) in accordance with paragraph 8 of Schedule 1 to this Act, by virtue of the service of a notice of proposed modification or revocation of a scheduled monument consent under paragraph 5 of that Schedule.

(3) A person shall not be entitled to compensation under this section in a case falling within subsection (2)(a) above unless, on an application for scheduled monument consent for the works in question, consent is refused, or is granted subject to conditions other than those which previously applied under the order.

(4) For the purposes of this section, any expenditure incurred in the preparation of plans for the purposes of any works, or upon other similar matters preparatory thereto, shall be taken to be included in the expenditure incurred in carrying out those works.

(5) Subject to subsection (4) above, no compensation shall be paid under this section in respect of any works carried out before the grant of the scheduled monument consent in question, or in respect of any other loss or damage (not being loss or damage consisting of depreciation of the value of an interest in land) arising out of anything done or omitted to be done before the grant of that consent.

Acquisition of ancient monuments

10.—(1) The Secretary of State may acquire compulsorily any ancient monument for the purpose of securing its preservation.

Compulsory
acquisition
of ancient
monuments.

(2) The Acquisition of Land (Authorisation Procedure) Act 1946 shall apply to any compulsory acquisition by the Secretary of State under this section of an ancient monument situated in England and Wales as it applies to a compulsory acquisition by another Minister in a case falling within section 1(1) of that Act.

1946 c. 49.

(3) The Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947 shall apply to any compulsory acquisition by

Scot- 1947 c. 42.

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1972 c. 58.

the Secretary of State under this section of an ancient monument situated in Scotland as it applies to a compulsory acquisition by another Minister or by the Secretary of State under section 58 of the National Health Service (Scotland) Act 1972 in a case falling within section 1(1) of the said Act of 1947.

(4) For the purpose of assessing compensation in respect of any compulsory acquisition under this section of a monument which, immediately before the date of the compulsory purchase order, was scheduled, it shall be assumed that scheduled monument consent would not be granted for any works which would or might result in the demolition, destruction or removal of the monument or any part of it.

Acquisition
by agreement
or gift of
ancient
monuments.

11.—(1) The Secretary of State may acquire by agreement any ancient monument.

(2) Any local authority may acquire by agreement any ancient monument situated in or in the vicinity of their area.

(3) The Secretary of State or any local authority may accept a gift (whether by deed or will) of any ancient monument.

1965 c. 56.

(4) The provisions of Part I of the Compulsory Purchase Act 1965 (so far as applicable) other than sections 4 to 8, section 10 and section 31, shall apply in relation to any acquisition under subsection (1) or (2) above of an ancient monument situated in England and Wales.

(5) For the purpose of any acquisition under subsection (1) or (2) above of any ancient monument situated in Scotland which is heritable—

1845 c. 33.

(a) the Lands Clauses Acts (with the exception of the provisions excluded by subsection (6) below) and sections 6 and 70 to 78 of the Railways Clauses Consolidation (Scotland) Act 1845 (as originally enacted and not as amended by section 15 of the Mines (Working Facilities and Support) Act 1923) shall be incorporated with this section ; and

1923 c. 20.

(b) in construing those Acts for the purposes of this section, this section shall be deemed to be the special Act and the Secretary of State or the local authority acquiring the monument shall be deemed to be the promoter of the undertaking or company (as the case may require).

(6) The provisions of the Lands Clauses Acts excluded from being incorporated with this section are—

(a) those which relate to the acquisition of land otherwise than by agreement ;

(b) those which relate to access to the special Act ; and

1845 c. 19.

(c) sections 120 to 125 of the Lands Clauses Consolidation (Scotland) Act 1845.

Guardianship of ancient monuments

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- 12.—(1) Subject to subsection (4) below, a person who has—
- (a) an interest of any description mentioned in subsection (3) below in an ancient monument situated in England and Wales ; or
 - (b) any heritable interest in an ancient monument situated in Scotland ;

Power to place ancient monument under guardianship.

may, with the consent of the Secretary of State, constitute him by deed guardian of the monument.

(2) Subject to subsection (4) below, a person who has any such interest in an ancient monument may with the consent of any local authority in or in the vicinity of whose area the monument is situated constitute that authority by deed guardians of the monument.

(3) The interests in an ancient monument situated in England and Wales which qualify a person to establish guardianship of the monument under subsection (1) or (2) above are the following—

- (a) an estate in fee simple absolute in possession ;
- (b) a leasehold estate or interest in possession, being an estate or interest for a term of years of which not less than forty-five are unexpired or (as the case may be) renewable for a term of not less than forty-five years ; and
- (c) an interest in possession for his own life or the life of another, or for lives (whether or not including his own), under any existing or future trust for sale under which the estate or interest for the time being subject to the trust falls within paragraph (a) or (b) above.

(4) A person who is not the occupier of an ancient monument may not establish guardianship of the monument under this section unless the occupier is also a party to the deed executed for the purposes of subsection (1) or (2) above.

(5) Any person who has an interest in an ancient monument may be a party to any such deed in addition to the person establishing the guardianship of the monument and (where the latter is not the occupier) the occupier.

(6) In relation to any monument of which the Secretary of State or any local authority have been constituted the guardians under this Act, references below in this Act to the guardianship deed are references to the deed executed for the purposes of subsection (1) or (as the case may be) subsection (2) above.

(7) A guardianship deed relating to any ancient monument situated in England and Wales shall be a local land charge.

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(8) A guardianship deed relating to any ancient monument situated in Scotland may be recorded in the Register of Sasines.

(9) Every person deriving title to any ancient monument from, through or under any person who has executed a guardianship deed shall be bound by the guardianship deed unless—

(a) in the case of a monument in England and Wales, he derives title by virtue of any disposition made by the person who executed the deed before the date of the deed ; or

(b) in the case of a monument in Scotland, he is a person who in good faith and for value acquired right (whether completed by infestment or not) to his interest in the monument before the date of the deed.

(10) The Secretary of State or a local authority shall not consent to become guardians of any structure which is occupied as a dwelling house by any person other than a person employed as the caretaker thereof or his family.

(11) Except as provided by this Act, any person who has any estate or interest in a monument under guardianship shall have the same right and title to, and estate or interest in, the monument in all respects as if the Secretary of State or (as the case may be) the local authority in question had not become guardians of the monument.

Effect of
guardianship.

13.—(1) The Secretary of State and any local authority shall be under a duty to maintain any monument which is under their guardianship by virtue of this Act.

(2) The Secretary of State and any local authority shall have full control and management of any monument which is under their guardianship by virtue of this Act.

(3) With a view to fulfilling their duty under subsection (1) above to maintain a monument of which they are the guardians, the Secretary of State or any local authority shall have power to do all such things as may be necessary for the maintenance of the monument and for the exercise by them of proper control and management with respect to the monument.

(4) Without prejudice to the generality of the preceding provisions of this section, the Secretary of State or any local authority shall have power—

(a) to make any examination of a monument which is under their guardianship by virtue of this Act ;

(b) to open up any such monument or make excavations therein for the purpose of examination or otherwise ;
and

(c) to remove the whole or any part of any such monument to another place for the purpose of preserving it.

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(5) The Secretary of State or any local authority may at any reasonable time enter the site of a monument which is under their guardianship by virtue of this Act for the purpose of exercising any of their powers under this section in relation to the monument (and may authorise any other person to exercise any of those powers on their behalf).

(6) Subsections (2) to (4) above are subject to any provision to the contrary in the guardianship deed.

(7) In this Part of this Act "maintenance" includes fencing, repairing, and covering in, of a monument and the doing of any other act or thing which may be required for the purpose of repairing the monument or protecting it from decay or injury, and "maintain" shall be construed accordingly.

14.—(1) Subject to the following provisions of this section, where the Secretary of State or a local authority have become guardians of any monument under this Act, they may by agreement made with the persons who are for the time being immediately affected by the operation of the guardianship deed—

Termination
of guardian-
ship.

(a) exclude any part of the monument from guardianship ;
or

(b) renounce guardianship of the monument ;

but except as provided above the monument shall remain under guardianship (unless it is acquired by its guardians) until an occupier of the monument who is entitled to terminate the guardianship gives notice in writing to that effect to the guardians of the monument.

An occupier of a monument is entitled to terminate the guardianship of the monument if—

(a) he has any interest in the monument which would qualify him to establish guardianship of the monument under section 12 of this Act ; and

(b) he is not bound by the guardianship deed.

(2) A local authority shall consult with the Secretary of State before entering into any agreement under this section.

(3) Neither the Secretary of State nor a local authority may enter into any such agreement unless he or they are satisfied with respect to the part of the monument or (as the case may be) with respect to the whole of the monument in question—

(a) that satisfactory arrangements have been made for ensuring its preservation after termination of the guardianship ; or

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(b) that it is no longer practicable to preserve it (whether because of the cost of preserving it or otherwise).

(4) An agreement under this section must be made under seal in the case of a monument situated in England and Wales.

(5) Where in the case of a monument situated in Scotland the guardianship deed has been recorded in the Register of Sasines in accordance with section 12 of this Act an agreement under this section relating to that monument may also be so recorded.

*Acquisition and guardianship of land in the vicinity
of an ancient monument, etc.*

Acquisition
and guardian-
ship of land
in the vicinity
of an ancient
monument.

15.—(1) References in sections 10 to 12 of this Act to an ancient monument shall include references to any land adjoining or in the vicinity of an ancient monument which appears to the Secretary of State or a local authority to be reasonably required for any of the following purposes, that is to say—

- (a) the maintenance of the monument or its amenities ;
- (b) providing or facilitating access to the monument ;
- (c) the exercise of proper control or management with respect to the monument ;
- (d) the storage of equipment or materials for the purpose mentioned in paragraph (a) above ; and
- (e) the provision of facilities and services for the public for or in connection with affording public access to the monument ;

(and one of those purposes shall accordingly be sufficient to support the compulsory acquisition of any such land under section 10(1) of this Act, instead of the purpose there mentioned).

(2) Land may be acquired or taken into guardianship by virtue of this section for any of the purposes relating to an ancient monument mentioned in subsection (1) above either at the same time as the monument or subsequently.

(3) The Secretary of State and any local authority shall have full control and management of any land which is under their guardianship by virtue of this Act after being taken into guardianship by virtue of this section for a purpose relating to any ancient monument, and shall have power to do all such things as may be necessary—

- (a) for the exercise by them of proper control and management with respect to the land ; and
- (b) for the use of the land for any of the purposes relating to the monument mentioned in subsection (1) above.

(4) The Secretary of State and any local authority may at any reasonable time enter any land which is under their guardianship by virtue of this Act for the purpose of exercising their power under subsection (3) above (and may authorise any other person to do so, and to exercise that power, on their behalf).

(5) Section 14(1) and (2) of this Act shall apply in relation to any land taken into guardianship by virtue of this section for any purpose relating to an ancient monument as they apply in relation to a monument, but, apart from any termination of guardianship by virtue of that section, any such land shall also cease to be under guardianship if the monument in question ceases to be under guardianship otherwise than by virtue of being acquired by its guardians or ceases to exist.

(6) References below in this Act, in relation to any monument of which the Secretary of State or a local authority are the owners or guardians by virtue of this Act, to land associated with that monument (or to associated land) are references to any land acquired or taken into guardianship by virtue of this section for a purpose relating to that monument, or appropriated for any such purpose under a power conferred by any other enactment.

16.—(1) The Secretary of State may acquire, by agreement or compulsorily, over land adjoining or in the vicinity of any monument which is under his ownership by virtue of this Act, any easement which appears to him to be necessary—

Acquisition of easements and other similar rights over land in the vicinity of an ancient monument.

(a) for any of the purposes relating to that monument mentioned in section 15(1) of this Act; or

(b) for the use of any land associated with that monument for any of those purposes.

(2) A local authority may by agreement acquire over land adjoining or in the vicinity of any monument which is under their ownership by virtue of this Act any such easement as the Secretary of State may acquire by virtue of subsection (1) above.

(3) The power of acquiring an easement under subsection (1) or (2) above shall include power to acquire any such easement by the grant of a new right.

(4) The Secretary of State or any local authority may acquire, for the benefit of any monument or land under his or their guardianship by virtue of this Act, a right of any description which he or they would be authorised to acquire under any of the preceding provisions of this section if the monument or land was under his or their ownership by virtue of this Act, and those provisions shall apply accordingly in any such case.

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(5) Any right to which subsection (4) above applies—

- (a) shall be treated for the purposes of its acquisition under this section and in all other respects as if it were a legal easement ; and
- (b) may be enforced by the guardians for the time being of the monument or land for whose benefit it was acquired as if they were the absolute owner in possession of that monument or land.

(6) Any right to which subsection (4) above applies which is acquired by agreement under this section for a purpose relating to any monument under guardianship, or for the use of any land associated with any such monument for any purpose relating to that monument—

- (a) subject to any provision to the contrary in the agreement under which it was acquired, may be revoked by the grantor ; and
- (b) may be revoked by any successor in title of the grantor as respects any of the land over which it is exercisable in which he has an interest ;

if the monument ceases to be under guardianship otherwise than by virtue of being acquired by its guardians or ceases to exist.

(7) References above in this section to an easement or (as the case may be) to a legal easement shall be construed in relation to land in Scotland as references to a servitude.

(8) Any right to which subsection (4) above applies—

- (a) shall be a local land charge, if it relates to land in England and Wales ; and
- (b) may be recorded in the Register of Sasines, if it relates to land in Scotland.

1946_c. 49. (9) The Acquisition of Land (Authorisation Procedure) Act 1946 shall apply to any compulsory acquisition by the Secretary of State under this section of any easement over land in England and Wales as it applies to a compulsory acquisition by another Minister in a case falling within section 1(1) of that Act.

1947_c. 42. (10) The Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947 shall apply to any compulsory acquisition by the Secretary of State under this section of any servitude over land in Scotland as it applies to a compulsory acquisition by another Minister or by the Secretary of State under section 58 of the National Health Service (Scotland) Act 1972 in a case falling within section 1(1) of the said Act of 1947.

1965 c. 56. (11) The provisions of Part I of the Compulsory Purchase Act 1965 (so far as applicable) other than sections 4 to 8, section 10

and section 31, shall apply in relation to any acquisition by agreement under this section of any easement over land in England and Wales. PART I

(12) For the purposes of any acquisition by agreement under this section of any servitude over land in Scotland—

(a) the Lands Clauses Acts (with the exception of the provisions excluded by subsection (13) below) and sections 6 and 70 to 78 of the Railways Clauses Consolidation (Scotland) Act 1845 (as originally enacted and not as amended by section 15 of the Mines (Working Facilities and Support) Act 1923) shall be incorporated with this section ; and 1845 c. 33.
1923 c. 20.

(b) in construing those Acts for the purposes of this section, this section shall be deemed to be the special Act and the Secretary of State or the local authority acquiring the servitude shall be deemed to be the promoter of the undertaking or company (as the case may require).

(13) The provisions of the Lands Clauses Acts excluded from being incorporated with this section are—

(a) those which relate to the acquisition of land otherwise than by agreement ;

(b) those which relate to access to the special Act ; and

(c) sections 120 to 125 of the Lands Clauses Consolidation (Scotland) Act 1845. 1845 c. 19.

Agreements concerning ancient monuments, etc.

17.—(1) The Secretary of State may enter into an agreement under this section with the occupier of an ancient monument or of any land adjoining or in the vicinity of an ancient monument. Agreements concerning ancient monuments and land in their vicinity.

(2) A local authority may enter into an agreement under this section with the occupier of any ancient monument situated in or in the vicinity of their area or with the occupier of any land adjoining or in the vicinity of any such ancient monument.

(3) Any person who has an interest in an ancient monument or in any land adjoining or in the vicinity of an ancient monument may be a party to an agreement under this section in addition to the occupier.

(4) An agreement under this section may make provision for all or any of the following matters with respect to the monument or land in question, that is to say—

(a) the maintenance and preservation of the monument and its amenities ;

PART I

- (b) the carrying out of any such work, or the doing of any such other thing, in relation to the monument or land as may be specified in the agreement ;
- (c) public access to the monument or land and the provision of facilities and information or other services for the use of the public in that connection ;
- (d) restricting the use of the monument or land ;
- (e) prohibiting in relation to the monument or land the doing of any such thing as may be specified in the agreement ; and
- (f) the making by the Secretary of State or (as the case may be) by the local authority of payments in such manner, of such amounts and on such terms as may be so specified (and whether for or towards the cost of any work provided for under the agreement or in consideration of any restriction, prohibition or obligation accepted by any other party thereto) ;

and may contain such incidental and consequential provisions as appear to the Secretary of State or (as the case may be) to the local authority to be necessary or expedient.

(5) Where an agreement under this section expressly provides that the agreement as a whole or any restriction, prohibition or obligation arising thereunder is to be binding on the successors of any party to the agreement (but not otherwise), then, as respects any monument or land in England and Wales, every person deriving title to the monument or land in question from, through or under that party shall be bound by the agreement, or (as the case may be) by that restriction, prohibition or obligation, unless he derives title by virtue of any disposition made by that party before the date of the agreement.

(6) An agreement under this section relating to any monument or land in Scotland and containing any such provision as is mentioned in subsection (5) above may be recorded in the Register of Sasines, and that subsection shall apply to any such agreement which is so recorded or (as the case may be) to any restriction, prohibition or obligation to which that provision relates.

(7) Neither—

1925 c. 20.

(a) section 84 of the Law of Property Act 1925 (power of Lands Tribunal to discharge or modify restrictive covenants) ; nor

1970 c. 35.

(b) sections 1 and 2 of the Conveyancing and Feudal Reform (Scotland) Act 1970 (power of Lands Tribunal for Scotland to vary or discharge land obligations) ;
shall apply to an agreement under this section.

(8) Nothing in any agreement under this section to which the Secretary of State is a party shall be construed as operating as a scheduled monument consent.

PART I

Powers of limited owners

18.—(1) Subject to section 12 of this Act, a person may establish guardianship of any land under subsection (1) or (2) of that section or join in executing a guardianship deed for the purposes of that section notwithstanding that he is a limited owner of the land.

Powers of limited owners for purposes of sections 12, 16 and 17.

(2) A person may—

- (a) grant any easement, servitude or other right over land which the Secretary of State or any local authority are authorised to acquire under section 16 of this Act; or
- (b) enter into an agreement under section 17 of this Act with respect to any land;

notwithstanding that he is a limited owner of the land.

(3) For the purposes of this section—

- (a) a body corporate or corporation sole is a limited owner of any land in which it has an interest; and
- (b) any other persons are limited owners of land in which they have an interest only if they hold that interest in one or other of the capacities mentioned in subsection (4) below.

(4) The capacities referred to in subsection (3)(b) above are the following—

- (a) as tenant for life or statutory owner within the meaning of the Settled Land Act 1925; 1925 c. 18.
- (b) as trustees for sale within the meaning of the Law of Property Act 1925; 1925 c. 20.
- (c) as liferenter or heir of entail in possession (in Scotland); and
- (d) as trustees for charities or as commissioners or trustees for ecclesiastical, collegiate or other public purposes.

(5) The Trusts (Scotland) Act 1921 shall have effect as if among the powers conferred on trustees by section 4 of that Act (general powers of trustees) there were included a power to do any of the following acts in relation to the trust estate or any part of it, that is to say— 1921 c. 58.

- (a) to execute a guardianship deed;
- (b) to grant any servitude or other right which the Secretary of State or any local authority are authorised to acquire under section 16 of this Act; and
- (c) to enter into an agreement under section 17 of this Act.

PART I

(6) Subject to subsection (7) below, where a person who is a limited owner of any land by virtue of holding an interest in the land in any of the capacities mentioned in subsection (4) above executes a guardianship deed in relation to the land the guardianship deed shall bind every successive owner of any estate or interest in the land.

(7) Where the land to which a guardianship deed relates is at the date of the deed subject to any incumbrance not capable of being overreached by the limited owner in exercise of any powers of sale or management conferred on him by law or under any settlement or other instrument, the deed shall not bind the incumbrancer.

(8) Subject to subsection (9) below, where an agreement under section 17 of this Act to which a limited owner is a party expressly provides that the agreement as a whole or any restriction, prohibition or obligation arising thereunder is to be binding on his successors (but not otherwise), subsections (6) and (7) above shall apply to the agreement or (as the case may be) to the restriction, prohibition or obligation in question as they apply to a guardianship deed.

(9) Subsection (8) above does not apply to an agreement relating to any land in Scotland unless it is recorded in the Register of Sasines.

Public access to monuments under public control

Public
access to
monuments
under public
control.

19.—(1) Subject to the following provisions of this section, the public shall have access to any monument under the ownership or guardianship of the Secretary of State or any local authority by virtue of this Act.

(2) The Secretary of State and any local authority may nevertheless control the times of normal public access to any monument under their ownership or guardianship by virtue of this Act and may also, if they consider it necessary or expedient to do so in the interests of safety or for the maintenance or preservation of the monument, entirely exclude the public from access to any such monument or to any part of it, for such period as they think fit:

Provided that—

- (a) the power of a local authority under this subsection to control the times of normal public access to any monument shall only be exercisable by regulations under this section ; and
- (b) the power of a local authority under this subsection entirely to exclude the public from access to any monument with a view to its preservation shall only be exercisable with the consent of the Secretary of State.

PART I

(3) The Secretary of State and any local authority may by regulations under this section regulate public access to any monument, or to all or any of the monuments, under their ownership or guardianship by virtue of this Act and any such regulations made by the Secretary of State may also apply to any monument, or to all or any of the monuments, under his control or management for any other reason.

(4) Without prejudice to the generality of subsection (3) above, regulations made by the Secretary of State or a local authority under this section may prescribe the times when the public are to have access to monuments to which the regulations apply and may make such provision as appears to the Secretary of State or to the local authority in question to be necessary for—

- (a) the preservation of any such monument and its amenities or of any property of the Secretary of State or local authority ; and
- (b) prohibiting or regulating any act or thing which would tend to injure or disfigure any such monument or its amenities or to disturb the public in their enjoyment of it ;

and may prescribe charges for the admission of the public to any such monument or to any class or description of monuments to which the regulations apply.

(5) Without prejudice to subsections (3) and (4) above, the Secretary of State and any local authority shall have power to make such charges as they may from time to time determine for the admission of the public to any monument under their ownership or guardianship by virtue of this Act or (in the case of the Secretary of State) to any monument otherwise under his control or management.

(6) Notwithstanding subsection (1) above, any person authorised in that behalf by the Secretary of State or by a local authority may refuse admission—

- (a) to any monument under the ownership or guardianship of the Secretary of State or (as the case may be) of that local authority by virtue of this Act ; or
- (b) (in the case of the Secretary of State) to any monument otherwise under his control or management ;

to any person he has reasonable cause to believe is likely to do anything which would tend to injure or disfigure the monument or its amenities or to disturb the public in their enjoyment of it.

(7) If any person contravenes or fails to comply with any provision of any regulations under this section, he shall be

PART I

liable on summary conviction or, in Scotland, on conviction before a court of summary jurisdiction, to a fine not exceeding £50.

(8) Regulations made by a local authority under this section shall not take effect unless they are submitted to and confirmed by the Secretary of State, and the Secretary of State may confirm any such regulations either with or without modifications.

(9) In relation to any monument under guardianship, subsection (1) above is subject to any provision to the contrary in the guardianship deed.

Provision of facilities for the public in connection with ancient monuments.

20.—(1) The Secretary of State and any local authority may provide such facilities and information or other services for the public for or in connection with affording public access—

(a) to any monument under their ownership or guardianship by virtue of this Act; or

(b) (in the case of the Secretary of State) to any monument otherwise under his control or management;

as appear to them to be necessary or desirable.

(2) Facilities and information or other services for the public may be provided under this section in or on the monument itself or on any land associated with the monument.

(3) The Secretary of State and any local authority shall have power to make such charges as they may from time to time determine for the use of any facility or service provided by them for the public under this section.

Transfer of ownership and guardianship of ancient monuments

Transfer of ancient monuments between local authorities and Secretary of State.

21.—(1) Subject to subsection (2) below, the Secretary of State and any local authority may, in respect of any monument of which they are the owners or guardians by virtue of this Act or any land associated with any such monument, enter into and carry into effect any agreements for the transfer—

(a) from the Secretary of State to the local authority;

(b) from the local authority to the Secretary of State; or

(c) from the local authority to another local authority; of that monument or land or (as the case may be) of the guardianship of that monument or land.

(2) Where the Secretary of State or the local authority in question are guardians of a monument or associated land, they may not enter into an agreement under this section with respect to that monument or land without the consent of the persons who are for the time being immediately affected by the operation of the guardianship deed.

Ancient Monuments Boards

PART I

22.—(1) The advisory boards constituted under section 15 of the Ancient Monuments Consolidation and Amendment Act 1913 shall continue to exist under the names by which they were respectively known immediately before the commencement of this Act, that is to say—

- (a) the Ancient Monuments Board for England ;
- (b) the Ancient Monuments Board for Scotland ; and
- (c) the Ancient Monuments Board for Wales.

(2) The Ancient Monuments Board for England shall consist of members representing the following bodies, that is to say—

The Royal Commission on Historical Monuments (England)
The Society of Antiquaries of London
The Royal Academy of Arts
The Royal Institute of British Architects
The Trustees of the British Museum
The British Academy

and of such other members as the Secretary of State may appoint.

(3) The Ancient Monuments Board for Scotland shall consist of members representing the following bodies, that is to say—

The Royal Commission on the Ancient and Historical Monuments of Scotland
The Royal Incorporation of Architects in Scotland
The Society of Antiquaries of Scotland

and of such other members as the Secretary of State may appoint.

(4) The Ancient Monuments Board for Wales shall consist of members representing the following bodies, that is to say—

The Royal Commission on Ancient and Historical Monuments (Wales)
The National Museum of Wales
The Cambrian Archaeological Association
The Royal Institute of British Architects

and of such other members as the Secretary of State may appoint.

PART I

(5) References in this Act and in any other enactment to the Ancient Monuments Board shall be construed—

- (a) in relation to England, as references to the Ancient Monuments Board for England ;
- (b) in relation to Scotland, as references to the Ancient Monuments Board for Scotland ; and
- (c) in relation to Wales, as references to the Ancient Monuments Board for Wales.

(6) It shall be the function of the Ancient Monuments Board to advise the Secretary of State with respect to the exercise of his functions under this Act, whether generally or in relation to any particular case or classes of case.

(7) Without prejudice to the generality of subsection (6) above the Ancient Monuments Board may advise the Secretary of State with respect to any of the following, that is to say—

- (a) the inclusion of any monument in the Schedule under section 1(3) of this Act ;
- (b) the exclusion of any monument from the Schedule ;
- (c) the amendment of the entry in the Schedule relating to any monument ;
- (d) the termination of guardianship by an agreement under section 14 of this Act ; and
- (e) the disposal (in accordance with section 30 of this Act) of any land acquired under section 10, 11 or 21 of this Act.

(8) The Secretary of State may by regulations under this section amend subsection (2), (3) or (4) above.

Annual
reports of
Ancient
Monuments
Boards.

23. The Ancient Monuments Board for England, the Ancient Monuments Board for Scotland and the Ancient Monuments Board for Wales shall each, before such date in every year as the Secretary of State may fix, send to the Secretary of State a report on the discharge by them of their functions during the previous year, and the Secretary of State shall lay a copy of each such report before each House of Parliament.

Miscellaneous and supplemental

Expenditure
by Secretary
of State or
local
authority on
acquisition and
preservation
of ancient
monuments,
etc.

24.—(1) The Secretary of State may defray or contribute towards the cost of the acquisition by any person of any ancient monument.

(2) The Secretary of State may undertake, or assist in, or defray or contribute towards the cost of the removal of any ancient monument or of any part of any such monument to another place for the purpose of preserving it, and may at the

request of the owner undertake, or assist in, or defray or contribute towards the cost of the preservation, maintenance and management of any ancient monument.

PART I

(3) The Secretary of State may contribute towards the cost of the provision of facilities or services for the public by a local authority under section 20 of this Act.

(4) Any local authority may at the request of the owner undertake, or assist in, or defray or contribute towards the cost of the preservation, maintenance and management of any ancient monument situated in or in the vicinity of their area.

(5) No expenses shall be incurred by the Secretary of State or any local authority under this section in connection with any monument which is occupied as a dwelling house by any person other than a person employed as the caretaker thereof or his family.

25.—(1) The Secretary of State may give advice with reference to the treatment of any ancient monument.

Advice and
superin-
tendence by
Secretary of
State.

(2) The Secretary of State may also, if in his opinion it is advisable, superintend any work in connection with any ancient monument if invited to do so by the owner, and shall superintend any such work, whether required to do so by the owner or not, in connection with any scheduled monument, if in his opinion it is advisable.

(3) The Secretary of State may make a charge for giving advice and superintendence under this section or may give it free of charge, as he thinks fit.

26.—(1) A person duly authorised in writing by the Secretary of State may at any reasonable time enter any land in, on or under which the Secretary of State knows or has reason to believe there is an ancient monument for the purpose of inspecting the land (including any building or other structure on the land) with a view to recording any matters of archaeological or historical interest.

Power of
entry on land
believed to
contain an
ancient
monument.

(2) Subject to subsection (3) below, a person entering any land in exercise of the power conferred by subsection (1) above may carry out excavations in the land for the purpose of archaeological investigation.

(3) No excavation shall be made in exercise of the power conferred by subsection (2) above except with the consent of every person whose consent to the making of the excavation would be required apart from this section.

PART I
General
provisions
as to
compensation
for deprecia-
tion under
Part I.
1961 c. 33.
1963 c. 51.

27.—(1) For the purpose of assessing any compensation to which this section applies, the rules set out in section 5 of the Land Compensation Act 1961 or, in relation to land in Scotland, the rules set out in section 12 of the Land Compensation (Scotland) Act 1963 shall, so far as applicable and subject to any necessary modifications, have effect as they have effect for the purpose of assessing compensation for the compulsory acquisition of an interest in land.

(2) This section applies to any compensation payable under section 7 or 9 of this Act in respect of any loss or damage consisting of depreciation of the value of an interest in land.

(3) Where an interest in land is subject to a mortgage—

(a) any compensation to which this section applies, which is payable in respect of depreciation of the value of that interest, shall be assessed as if the interest were not subject to the mortgage;

(b) a claim for any such compensation may be made by any mortgagee of the interest, but without prejudice to the making of a claim by the person entitled to the interest;

(c) no compensation to which this section applies shall be payable in respect of the interest of the mortgagee (as distinct from the interest which is subject to the mortgage); and

(d) any compensation to which this section applies which is payable in respect of the interest which is subject to the mortgage shall be paid to the mortgagee, or, if there is more than one mortgagee, to the first mortgagee, and shall in either case be applied by him as if it were proceeds of sale.

Offence of
damaging
certain
ancient
monuments.

28.—(1) A person who without lawful excuse destroys or damages any protected monument—

(a) knowing that it is a protected monument; and

(b) intending to destroy or damage the monument or being reckless as to whether the monument would be destroyed or damaged;

shall be guilty of an offence.

(2) This section applies to anything done by or under the authority of the owner of the monument, other than an act for the execution of excepted works, as it applies to anything done by any other person.

In this subsection “excepted works” means works for which scheduled monument consent has been given under this Act (including any consent granted by order under section 3).

(3) In this section "protected monument" means any scheduled monument and any monument under the ownership or guardianship of the Secretary of State or a local authority by virtue of this Act.

PART I

(4) A person guilty of an offence under this section shall be liable—

- (a) on summary conviction, to a fine not exceeding the statutory maximum or to imprisonment for a term not exceeding six months or both; or
- (b) on conviction on indictment, to a fine or to imprisonment for a term not exceeding two years or both.

29. Where the owner or any other person is convicted of an offence involving damage to a monument situated in England and Wales which was at the time of the offence under the guardianship of the Secretary of State or any local authority by virtue of this Act, any compensation order made under section 35 of the Powers of Criminal Courts Act 1973 (compensation orders against convicted persons) in respect of that damage shall be made in favour of the Secretary of State or (as the case may require) in favour of the local authority in question.

Compensation orders for damage to monuments under guardianship in England and Wales. 1973 c. 62.

30.—(1) Subject to the following provisions of this section, the Secretary of State or any local authority may dispose of any land acquired by them under section 10, 11 or 21 of this Act.

Disposal of land acquired under Part I.

(2) A local authority shall consult with the Secretary of State before disposing of any land under this section.

(3) Subject to subsection (4) below, where the land in question is or includes a monument, the Secretary of State or (as the case may be) the local authority may only dispose of it on such terms as will in their opinion ensure the preservation of the monument.

(4) Subsection (3) above does not apply in any case where the Secretary of State or (as the case may be) the local authority are satisfied that it is no longer practicable to preserve the monument (whether because of the cost of preserving it or otherwise).

31. The Secretary of State or any local authority may receive voluntary contributions for or towards the cost of any expenditure incurred by them under this Part of this Act (whether in relation to any particular monument or land or otherwise).

Voluntary contributions towards expenditure under Part I.

32.—(1) In this Part of this Act "maintenance" and "maintenance" have the meanings given by section 13(7) of this Act, and expressions to which a meaning is given for the purposes of the

Interpretation of Part I.

PART I
1971 c. 78.
1972 c. 52.

Town and Country Planning Act 1971 or (as regards Scotland) for the purposes of the Town and Country Planning (Scotland) Act 1972 have the same meaning as in the said Act of 1971 or (as the case may require) as in the said Act of 1972.

(2) References in this Part of this Act to a monument, in relation to the acquisition or transfer of any monument (whether under a power conferred by this Part of this Act or otherwise), include references to any interest in or right over the monument.

(3) For the purposes of this Part of this Act the Secretary of State or a local authority are the owners of a monument by virtue of this Act if the Secretary of State or (as the case may be) the local authority have acquired it under section 10, 11 or 21 of this Act.

PART II

ARCHAEOLOGICAL AREAS

Designation of
areas of
archaeological
importance.

33.—(1) The Secretary of State may from time to time by order designate as an area of archaeological importance any area which appears to him to merit treatment as such for the purposes of this Act.

(2) A local authority may from time to time by order designate as an area of archaeological importance any area within the area of that local authority which appears to them to merit treatment as such for the purposes of this Act.

(3) An order under this section designating an area as an area of archaeological importance (whether made by the Secretary of State or by a local authority) is referred to below in this Act as a designation order.

(4) The Secretary of State may at any time by order vary or revoke a designation order, but his power to vary such an order is confined to reducing the area designated by the order.

(5) A designation order relating to an area in England and Wales shall be a local land charge.

(6) Schedule 2 to this Act shall have effect with respect to the making, and with respect to the variation and revocation, of designation orders.

Investigating
authorities for
areas of
archaeological
importance.

34.—(1) The Secretary of State may at any time appoint any person whom he considers to be competent to undertake archaeological investigations to exercise in relation to any area of archaeological importance the functions conferred by the following provisions of this Part of this Act on the investigating authority for an area of archaeological importance, and any such appointment shall be on such terms and for such period as the Secretary of State thinks fit.

(2) A person's appointment as investigating authority may be cancelled at any time by the Secretary of State.

(3) On appointing or cancelling the appointment of any person as investigating authority for an area of archaeological importance, the Secretary of State shall notify each local authority in whose area the area of archaeological importance in question is wholly or partly situated.

(4) Where there is for the time being no person holding appointment under this section as the investigating authority for an area of archaeological importance, the functions of the investigating authority for that area under this Part of this Act shall be exercisable by the Secretary of State.

(5) A person duly authorised in writing by any person by whom the functions of an investigating authority under this Part of this Act are for the time being exercisable may act on his behalf in the exercise of those functions.

35.—(1) Subject to section 37 of this Act, if any person carries out, or causes or permits to be carried out, on land in an area of archaeological importance any operations to which this section applies—

Notice required of operations in areas of archaeological importance.

(a) without having first served a notice relating to those operations which complies with subsections (4) and (5) below ; or

(b) within six weeks of serving such a notice ;

he shall be guilty of an offence.

(2) Subject to section 37 of this Act, this section applies to any of the following operations, that is to say—

(a) operations which disturb the ground ;

(b) flooding operations ; and

(c) tipping operations.

(3) In this Part of this Act the person carrying out or proposing to carry out any operations is referred to, in relation to those operations, as "the developer", and a notice complying with subsections (4) and (5) below is referred to as an "operations notice".

(4) A notice required for the purposes of this section—

(a) shall specify the operations to which it relates, the site on which they are to be carried out, the date on which it is proposed to begin them and, where the operations are to be carried out after clearance of the site, the developer's estimated date for completion of the clearance operations ;

PART II

(b) shall be accompanied by a certificate in the prescribed form which satisfies the requirements of section 36 of this Act ; and

(c) shall be in the prescribed form.

(5) A notice required for the purposes of this section shall be served by the developer—

(a) in the case of land in England and Wales, on the district council or London borough council or (as the case may be) on each district council or London borough council in whose area the site of the operations is wholly or partly situated ;

(b) in the case of land in Scotland, on the local authority or (as the case may be) on each local authority in whose area the site of the operations is wholly or partly situated ; or

(c) in a case where the developer is any such council or local authority, on the Secretary of State.

(6) Regulations made by the Secretary of State may prescribe the steps to be taken by any council or local authority on whom an operations notice is served in accordance with subsection (5) above.

(7) Where an operations notice is served with respect to operations which are to be carried out after clearance of any site, the developer shall notify the investigating authority for the area of archaeological importance in question of the clearance of the site immediately on completion of the clearance operations.

(8) If in a case falling within subsection (7) above the developer carries out, or causes or permits to be carried out, any of the operations to which the operations notice relates without having first notified the investigating authority of the clearance of the site in accordance with that subsection, this section shall have effect in relation to those operations as if the operations notice had not been served.

(9) A person guilty of an offence under this section shall be liable—

(a) on summary conviction or, in Scotland, on conviction before a court of summary jurisdiction, to a fine not exceeding the statutory maximum ; or

(b) on conviction on indictment to a fine.

1972 c. 70.

(10) Without prejudice to section 222 of the Local Government Act 1972, any such council as is mentioned in subsection (5)(a) above may institute proceedings for an offence under this section in respect of operations on any site situated partly in

their area notwithstanding that the operations are confined to a part of the site outside their area ; and if it appears to any such council or, in Scotland, to any local authority—

PART II

- (a) that any operations are being, or are about to be, carried out in contravention of this section on any site situated wholly or partly in their area ; and
- (b) that the site contains or is likely to contain anything of archaeological or historical interest which will be disturbed, damaged, destroyed or removed without proper archaeological investigation if operations are carried out on the site without regard for the provisions of this Part of this Act ;

that council or local authority may take proceedings in the High Court or, in Scotland, in any court of competent jurisdiction for the purpose of securing an injunction or interdict prohibiting those operations from being carried out in contravention of this section.

36.—(1) A person is qualified to issue a certificate for the purposes of section 35(4)(b) of this Act if he either—

Certificate to accompany operations notice under section 35.

- (a) has an interest in the site of the operations which (apart from any restrictions imposed by law) entitles him to carry out the operations in question ; or
- (b) has a right to enter on and take possession of that site under section 11(1) or (2) of the Compulsory Purchase Act 1965 (powers of entry on land subject to compulsory purchase) or, in the case of a site in Scotland, under paragraph 3(1) of Schedule 2 to the Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947.

1965 c. 56.

1947 c. 42.

(2) Statutory undertakers are qualified to issue a certificate for the purposes of section 35(4)(b) of this Act if they are entitled by or under any enactment to carry out the operations in question.

(3) Any such certificate—

- (a) shall be signed by or on behalf of a person or persons qualified in accordance with subsection (1) or (2) above to issue it ;
- (b) shall state that the person issuing the certificate has an interest within paragraph (a) or (as the case may be) a right within paragraph (b) of subsection (1) above or, in the case of a certificate issued by statutory undertakers, shall state that it is so issued and specify the enactment by or under which they are entitled to carry out the operations in question ; and

PART II

(c) if the person issuing the certificate is not the developer, shall state that he has authorised the developer to carry out the operations.

(4) If any person issues a certificate which purports to comply with the requirements of this section and which contains a statement which he knows to be false or misleading in a material particular, or recklessly issues a certificate which purports to comply with those requirements and which contains a statement which is false or misleading in a material particular, he shall be guilty of an offence and liable on summary conviction or, in Scotland, on conviction before a court of summary jurisdiction, to a fine not exceeding £200.

Exemptions
from offence
under section
35.

37.—(1) Section 35 of this Act does not apply to any operations carried out with the consent of the investigating authority for the area of archaeological importance in question.

(2) The Secretary of State may by order direct that section 35 shall not apply to the carrying out, or to the carrying out by any class or description of persons specified in the order, of operations of any class or description so specified; and an exemption conferred by an order under this subsection may be either unconditional or subject to any conditions specified in the order.

(3) The Secretary of State may direct that any exemption conferred by an order under subsection (2) above shall not apply to the carrying out on any land specified in the direction, or to the carrying out on any land so specified by any class or description of persons so specified, of operations of any class or description so specified, and may withdraw any direction given under this subsection.

(4) A direction under subsection (3) above shall not take effect until notice of it has been served on the occupier or (if there is no occupier) on the owner of the land in question.

(5) In any proceedings for an offence under section 35 consisting in carrying out, or causing or permitting to be carried out, any operations which disturb the ground, it shall be a defence for the accused to prove that he took all reasonable precautions and exercised all due diligence to avoid or prevent disturbance of the ground.

(6) In any proceedings for an offence under section 35 it shall be a defence for the accused to prove either—

(a) that he did not know and had no reason to believe that the site of the operations was within an area of archaeological importance;

- (b) that the operations were urgently necessary in the interests of safety or health and that notice in writing of the need for the operations was given to the Secretary of State as soon as reasonably practicable.

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38.—(1) Where an operations notice is served with respect to any operations, the investigating authority for the area of archaeological importance in which the site of the operations is situated shall thereupon have a right to enter, at any reasonable time, the site and any land giving access to the site, for either or both of the following purposes, that is to say—

Powers of investigating authority to enter and excavate site of operations covered by an operations notice.

- (a) for the purpose of inspecting the site (including any buildings or other structures on the site) with a view to recording any matters of archaeological or historical interest and determining whether it would be desirable to carry out any excavations in the site ; and
- (b) for the purpose of observing any operations carried out on the site with a view to examining and recording any objects or other material of archaeological or historical interest, and recording any matters of archaeological or historical interest, discovered during the course of those operations.

(2) Where—

- (a) an operations notice is served with respect to any operations ; and
- (b) the investigating authority for the area of archaeological importance in which the site of the operations is situated serves notice in accordance with subsection (3) below of its intention to excavate the site ;

the investigating authority shall have a right to carry out excavations in the site for the purpose of archaeological investigation at any time during the period allowed for excavation in accordance with subsection (4) below.

(3) The investigating authority shall only have a right to excavate the site of any operations in accordance with subsection (2) above if before the end of the period of four weeks beginning with the date of service of the operations notice the authority—

- (a) serves notice in the prescribed form of its intention to excavate on the developer ; and
- (b) serves a copy of that notice on any council (in England and Wales) or local authority (in Scotland) served with the operations notice and also (unless the functions of the investigating authority are for the time being exercisable by the Secretary of State) on the Secretary of State.

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(4) The period allowed for excavation under subsection (2) above is the period of four months and two weeks beginning—

- (a) with the date immediately following the end of the period of six weeks beginning with the date of service of the operations notice ; or
- (b) where the operations specified in the operations notice are to be carried out after clearance of the site, with the date of receipt of the notification of clearance of the site required under section 35(7) of this Act or with the date first mentioned in paragraph (a) above (whichever last occurs) ; or
- (c) with any earlier date agreed between the investigating authority and the developer.

(5) Where—

- (a) the investigating authority has served notice of its intention to excavate the site in accordance with subsection (3) above ; and
- (b) the period of six weeks beginning with the date of service of the operations notice has expired ;

the investigating authority shall have a right to carry out excavations in the site for the purpose of archaeological investigation notwithstanding that the period allowed for excavation in accordance with subsection (4) above has not yet begun, but only if the authority does not thereby obstruct the execution on the site by the developer of clearance operations or any other operations to which section 35 of this Act does not apply.

(6) The investigating authority may at any reasonable time enter the site and any land giving access to the site for the purpose of exercising a right to excavate the site in accordance with subsection (2) or (5) above.

(7) If operations to which the operations notice relates are carried out on the site at a time when the investigating authority has a right to excavate the site in accordance with subsection (2) or (5) above section 35 of this Act shall have effect in relation to those operations as if the operations notice had not been served (subject, however, to any exemption or defence conferred by or under section 37 of this Act).

(8) The Secretary of State may at any time direct—

- (a) that an investigating authority shall comply with any conditions specified in the direction in exercising any of its powers under the preceding provisions of this section in relation to any site ; or

- (b) that any such power shall cease to be exercisable by an investigating authority in relation to the whole or any part of any site ;

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and may vary or revoke any direction given under paragraph (a) above.

(9) On giving a direction under subsection (8) above the Secretary of State shall serve a copy of the direction on each of the following persons, that is to say—

- (a) the investigating authority ;
- (b) any council (in England and Wales) or local authority (in Scotland) served with the operations notice in question ;
- (c) the developer ; and
- (d) any person other than the developer by whom the certificate accompanying the operations notice in accordance with section 35(4)(b) of this Act was issued ;

and on varying or revoking any such direction the Secretary of State shall notify the same persons (giving particulars of the effect of any variation).

39.—(1) If an authority possessing compulsory purchase powers notifies the investigating authority for any area of archaeological importance that it proposes to carry out, or to authorise someone else to carry out, on any site in the area, operations of a description mentioned in section 35(2) of this Act (other than exempt operations), the investigating authority shall thereupon have a right to enter, at any reasonable time, the site and any land giving access to the site, for the purpose mentioned in section 38(1)(a) of this Act.

Power of investigating authority to investigate in advance of operations notice any site which may be acquired compulsorily.

In this subsection “exempt operations” means operations excluded from the application of section 35 by an order under section 37 of this Act.

(2) The right of an investigating authority to enter any site by virtue of subsection (1) above shall cease at the end of the period of one month beginning with the day on which it is first exercised.

(3) Section 38(8) of this Act shall apply in relation to the power of entry under this section as it applies in relation to the powers of an investigating authority under that section.

(4) Section 38(9) of this Act shall not apply in relation to a direction under section 38(8) with respect to the exercise of the

PART II power of entry under this section, but on giving any such direction the Secretary of State shall serve a copy of the direction on each of the following persons, that is to say—

- (a) the investigating authority ;
- (b) the authority possessing compulsory purchase powers ;
and
- (c) the owner and (if the owner is not the occupier) the occupier of the site in question ;

and on varying or revoking any such direction the Secretary of State shall notify the same persons (giving particulars of the effect of any variation).

(5) In this section “ authority possessing compulsory purchase powers ” means any person or body of persons who could be or have been authorised to acquire an interest in land compulsorily.

Other powers
of entry on
site of
operations
covered by
an operations
notice.

40. Where an operations notice is served with respect to any operations—

- (a) any person duly authorised in writing by the Secretary of State may at any reasonable time enter the site of the operations for the purpose of inspecting the site (including any building or other structure on the site) and recording any matters of archaeological or historical interest observed in the course of that inspection ;
and
- (b) any person duly authorised in writing by the Royal Commission on Historical Monuments may at any reasonable time enter the site for the purpose of inspecting any building or other structure on the site and recording any matters of archaeological or historical interest observed in the course of that inspection.

Interpretation
of Part II.

41.—(1) In this Part of this Act—

- (a) “ the developer ” and “ operations notice ” have the meanings respectively given by section 35(3) of this Act ;
- (b) references to a London borough council include references to the Common Council of the City of London ;
- (c) references to operations on any land include references to operations in, under or over the land in question ;
- (d) references to the clearance of any site are references to the demolition and removal of any existing building or other structure on the site and the removal of any other materials thereon so as to clear the surface of the land (but do not include the levelling of the surface

or the removal of materials from below the surface);
and

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- (e) references to clearance operations are references to operations undertaken for the purpose of or in connection with the clearance of any site.

(2) For the purposes of this Part of this Act, the investigating authority for an area of archaeological importance is the person for the time being holding appointment as such under section 34 of this Act or (if there is no such person) the Secretary of State.

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MISCELLANEOUS AND SUPPLEMENTAL

Restrictions on use of metal detectors

42.—(1) If a person uses a metal detector in a protected place without the written consent of the Secretary of State he shall be guilty of an offence and liable on summary conviction or, in Scotland, on conviction before a court of summary jurisdiction, to a fine not exceeding £200.

Restrictions
on use of metal
detectors.

(2) In this section—

“metal detector” means any device designed or adapted for detecting or locating any metal or mineral in the ground; and

“protected place” means any place which is either—

(a) the site of a scheduled monument or of any monument under the ownership or guardianship of the Secretary of State or a local authority by virtue of this Act; or

(b) situated in an area of archaeological importance.

(3) If a person without the written consent of the Secretary of State removes any object of archaeological or historical interest which he has discovered by the use of a metal detector in a protected place he shall be guilty of an offence and liable on summary conviction to a fine not exceeding the statutory maximum or on conviction on indictment to a fine.

(4) A consent granted by the Secretary of State for the purposes of this section may be granted either unconditionally or subject to conditions.

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(5) If any person—

(a) in using a metal detector in a protected place in accordance with any consent granted by the Secretary of State for the purposes of this section; or

(b) in removing or otherwise dealing with any object which he has discovered by the use of a metal detector in a protected place in accordance with any such consent;

fails to comply with any condition attached to the consent, he shall be guilty of an offence and liable, in a case falling within paragraph (a) above, to the penalty provided by subsection (1) above, and in a case falling within paragraph (b) above, to the penalty provided by subsection (3) above.

(6) In any proceedings for an offence under subsection (1) above, it shall be a defence for the accused to prove that he used the metal detector for a purpose other than detecting or locating objects of archaeological or historical interest.

(7) In any proceedings for an offence under subsection (1) or (3) above, it shall be a defence for the accused to prove that he had taken all reasonable precautions to find out whether the place where he used the metal detector was a protected place and did not believe that it was.

Powers of entry

Power of entry
for survey and
valuation.

43.—(1) Any person authorised under this section may at any reasonable time enter any land for the purpose of surveying it, or estimating its value, in connection with any proposal to acquire that or any other land under this Act or in connection with any claim for compensation under this Act in respect of any such acquisition or for any damage to that or any other land.

(2) A person is authorised under this section if he is an officer of the Valuation Office of the Inland Revenue Department or a person duly authorised in writing by the Secretary of State or other authority proposing to make the acquisition which is the occasion of the survey or valuation or (as the case may be) from whom in accordance with this Act compensation in respect of the damage is recoverable.

(3) Subject to section 44(9) of this Act, the power to survey land conferred by this section shall be construed as including power to search and bore for the purposes of ascertaining the nature of the subsoil or the presence of minerals therein.

Supplementary
provisions
with respect
to powers of
entry.

44.—(1) A person may not in the exercise of any power of entry under this Act, other than that conferred by section 43, enter any building or part of a building occupied as a dwelling house without the consent of the occupier.

(2) Subject to the following provisions of this subsection, a person may not in the exercise of any power of entry under this Act demand admission as of right to any land which is occupied unless prior notice of the intended entry has been given to the occupier—

(a) where the purpose of the entry is to carry out any works on the land (other than excavations in exercise of the power under section 26 or 38 of this Act), not less than fourteen days before the day on which admission is demanded ; or

(b) in any other case, not less than twenty-four hours before admission is demanded.

This subsection does not apply in relation to the power of entry under section 5 of this Act.

(3) A person seeking to enter any land in exercise of any power of entry under this Act shall, if so required by or on behalf of the owner or occupier thereof, produce evidence of his authority before entering.

(4) Any power of entry under this Act shall be construed as including power for any person entering any land in exercise of the power of entry to take with him any assistance or equipment reasonably required for the purpose to which his entry relates and to do there anything reasonably necessary for carrying out that purpose.

(5) Without prejudice to subsection (4) above, where a person enters any land in exercise of any power of entry under this Act for the purpose of carrying out any archaeological investigation or examination of the land, he may take and remove such samples of any description as appear to him to be reasonably required for the purpose of archaeological analysis.

(6) Subject to subsection (7) below, where any works are being carried out on any land in relation to which any power of entry under this Act is exercisable, a person acting in the exercise of that power shall comply with any reasonable requirements or conditions imposed by the person by whom the works are being carried out for the purpose of preventing interference with or delay to the works.

(7) Any requirements or conditions imposed by a person by whom any works are being carried out shall not be regarded as reasonable for the purposes of subsection (6) above if compliance therewith would in effect frustrate the exercise of the power of entry or the purpose of the entry ; and that subsection does not apply where the works in question are being carried out in contravention of section 2(1) or (6) or 35 of this Act.

(8) Any person who intentionally obstructs a person acting in the exercise of any power of entry under this Act shall be guilty

PART III of an offence and liable on summary conviction or, in Scotland, on conviction before a court of summary jurisdiction, to a fine not exceeding £200.

(9) Where under section 43 of this Act a person proposes to carry out any works authorised by virtue of subsection (3) of that section—

- (a) he shall not carry out those works unless notice of his intention to do so was included in the notice required by subsection (2)(a) above ; and
- (b) if the land in question is held by statutory undertakers, and those undertakers object to the proposed works on the grounds that the carrying out thereof would be seriously detrimental to the carrying on of their undertaking, the works shall not be carried out except with the authority of the Secretary of State.

Financial provisions

Expenditure on archaeological investigation. **45.—**(1) The Secretary of State may undertake, or assist in, or defray or contribute towards the cost of, an archaeological investigation of any land which he considers may contain an ancient monument or anything else of archaeological or historical interest.

(2) Any local authority may undertake, or assist in, or defray or contribute towards the cost of, an archaeological investigation of any land in or in the vicinity of their area, being land which they consider may contain an ancient monument or anything else of archaeological or historical interest.

(a) The Secretary of State or any local authority may publish the results of any archaeological investigation undertaken, assisted, or wholly or partly financed by them under this section in such manner and form as they think fit.

(4) Without prejudice to the application, by virtue of section 53 of this Act, of any other provision of this Act to land which is not within Great Britain, the powers conferred by this section shall be exercisable in relation to any such land which forms part of the sea bed within the seaward limits of United Kingdom territorial waters adjacent to the coast of Great Britain.

Compensation for damage caused by exercise of certain powers under this Act.

46.—(1) Subject to subsection (2) below, where, in the exercise in relation to any land of any power to which this section applies, any damage has been caused to that land or to any chattels on that land, any person interested in that land or those chattels may recover compensation in respect of that damage from the Secretary of State or other authority by or on whose behalf the power was exercised.

(2) Where any such damage is caused in the exercise of any such power by or on behalf of any person for the time being

holding appointment as the investigating authority for an area of archaeological importance under section 34 of this Act, compensation shall be recoverable in accordance with this section from the Secretary of State instead of from that person.

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(3) This section applies to any power to enter, or to do anything, on any land under any of the following sections of this Act, that is to say, sections 6, 26, 38, 39, 40 and 43.

(4) References in subsection (1) above to chattels shall be construed in relation to Scotland as references to moveables.

47.—(1) Any claim for compensation under this Act shall be made within the time and in the manner prescribed.

(2) Any question of disputed compensation under this Act shall be referred to and determined by the Lands Tribunal or (in the case of any land situated in Scotland) by the Lands Tribunal for Scotland.

General provisions with respect to claims for compensation under this Act.

(3) In relation to the determination of any such question, the provisions of sections 2 and 4 of the Land Compensation Act 1961 or (as the case may be) of sections 9 and 11 of the Land Compensation (Scotland) Act 1963 shall apply, but the references in section 4 of the Act of 1961 and section 11 of the Act of 1963 to the acquiring authority shall be construed as references to the authority by whom the compensation claimed is payable under this Act.

1961 c. 33.
1963 c. 51.

48.—(1) After section 10 of the Town and Country Planning (Amendment) Act 1972 (grants and loans for preservation or enhancement of character or appearance of conservation areas) there shall be inserted the following section—

“ Recovery of grants under section 10.

10A.—(1) This section applies to any grant under section 10 above made on terms that it shall be recoverable under this section ; but any such grant shall only be regarded for the purposes of this section as so made if before or on making the grant the Secretary of State gives to the grantee notice in writing—

Recovery of grants for expenditure in conservation areas and on historic buildings.
1972 c. 42.

- (a) summarising the effect of this section ; and
- (b) specifying the period during which the grant is to be recoverable in accordance with subsection (5) below in the case of a grant made for the purpose mentioned in subsection (4) below.

(2) The period specified under subsection (1)(b) above in the case of any grant shall be a period beginning with the day on which the grant is made and ending not more than ten years after that day.

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(3) If any condition subject to which a grant to which this section applies was made is contravened or not complied with, the Secretary of State may recover the amount of the grant or such part of it as he thinks fit from the grantee.

(4) The following provisions of this section have effect where a grant to which this section applies is made to any person for the purpose of defraying in whole or in part any expenditure in relation to any particular property; and references in those provisions to the relevant interest are references to the interest held by the grantee in that property on the day on which the grant is made.

(5) If, during the period specified for the purposes of this subsection under subsection (1)(b) above, the grantee disposes of the relevant interest or any part of it by way of sale or exchange or lease for a term of not less than twenty-one years, the Secretary of State may recover the amount of the grant or such part of it as he thinks fit from the grantee.

(6) If a person becomes entitled by way of gift from the grantee, whether directly or indirectly (but otherwise than by will) to a part of the relevant interest, a disposal by the donee in any manner mentioned in subsection (5) above of the interest so acquired by him in the property, or any part of that interest, shall be treated for the purposes of that subsection as a disposal by the grantee of a part of the relevant interest.

(7) If a person becomes entitled by way of any such gift to the whole of the relevant interest subsection (5) above shall have effect as if the donee were the grantee.

(8) Nothing in subsection (3) or (5) above shall be taken as conferring on the Secretary of State a right to recover (by virtue of a breach of more than one condition or disposals of several parts of an interest in property) amounts in the aggregate exceeding the amount of the grant."

1953 c. 49.

(2) After section 4 of the Historic Buildings and Ancient Monuments Act 1953 (grants for preservation of historic buildings, their contents and adjoining land) there shall be inserted the following section—

"Recovery
of grants
under
section 4.

4A.—(1) This section applies to any grant under section 4 of this Act made on terms that it shall be recoverable under this section; but any such grant shall only be regarded for the purposes of this

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section as so made if before or on making the grant the Secretary of State gives to the grantee notice in writing—

(a) summarising the effect of this section ; and

(b) specifying the period during which the grant is to be recoverable in accordance with subsection (4) below in the case of a grant made for the purpose there mentioned.

(2) The period specified under subsection (1)(b) above in the case of any grant shall be a period beginning with the day on which the grant is made and ending not more than ten years after that day.

(3) If any condition subject to which a grant to which this section applies was made is contravened or not complied with, the Secretary of State may recover the amount of the grant or such part of it as he thinks fit from the grantee.

(4) If, during the period specified under subsection (1)(b) above in the case of a grant to which this section applies made to any person for the purpose of defraying in whole or in part any expenditure on the repair, maintenance or upkeep of any property, the grantee disposes in any manner mentioned in subsection (5) below of the interest, or any part thereof, held by him in the property on the day on which the grant is made (referred to below in this section as “the relevant interest”), the Secretary of State may recover the amount of the grant or such part of it as he thinks fit from the grantee.

(5) Subsection (4) above only applies where the grantee disposes of the relevant interest or any part of it by way of sale or exchange or lease for a term of not less than twenty-one years.

(6) If a person becomes entitled by way of gift from the grantee, whether directly or indirectly (but otherwise than by will) to a part of the relevant interest, a disposal by the donee in any manner mentioned in subsection (5) above of the interest so acquired by him in the property, or any part of that interest, shall be treated for the purposes of subsection (4) above as a disposal by the grantee of a part of the relevant interest.

(7) If a person becomes entitled by way of any such gift to the whole of the relevant interest subsection (4) above shall have effect (except for the purpose of determining the relevant interest) as if the donee were the grantee.

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(8) Nothing in subsection (3) or (4) above shall be taken as conferring on the Secretary of State a right to recover (by virtue of a breach of more than one condition or disposals of several parts of an interest in property) amounts in the aggregate exceeding the amount of the grant."

Grants to the
Architectural
Heritage Fund.
1960 c. 58.

49.—(1) The Secretary of State may make grants to the institution registered under the Charities Act 1960 under the name of the Architectural Heritage Fund.

(2) A grant under this section may be made subject to such conditions as the Secretary of State may think fit to impose.

Application to special cases

Application
to Crown
land.

50.—(1) Notwithstanding any interest of the Crown in Crown land, but subject to the following provisions of this section—

(a) a monument which for the time being is Crown land may be included in the Schedule ; and

(b) any restrictions or powers imposed or conferred by any of the provisions of this Act shall apply and be exercisable in relation to Crown land and in relation to anything done on Crown land otherwise than by or on behalf of the Crown, but not so as to affect any interest of the Crown therein.

(2) Except with the consent of the appropriate authority—

(a) no power under this Act to enter, or to do anything, on any land shall be exercisable in relation to land which for the time being is Crown land ; and

(b) no interest in land which for the time being is Crown land shall be acquired compulsorily under Part I of this Act.

(3) In relation to any operations proposed to be carried out on Crown land otherwise than by or on behalf of the Crown, an operations notice served under section 35 of this Act shall not be effective for the purposes of that section unless it is accompanied by a certificate from the appropriate authority in the prescribed form consenting to the exercise in relation to that land in connection with those operations of the powers conferred by sections 38 and 40 of this Act.

(4) In this section "Crown land" means land in which there is a Crown interest or a Duchy interest ; "Crown interest" means an interest belonging to Her Majesty in right of the Crown, or belonging to a Government department, or held in trust for Her Majesty for the purposes of a Government department, and includes any estate or interest held in right of the Prince and Steward of Scotland ; "Duchy interest" means an interest

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belonging to Her Majesty in right of the Duchy of Lancaster, or belonging to the Duchy of Cornwall; and for the purposes of this section "the appropriate authority", in relation to any land—

- (a) in the case of land belonging to Her Majesty in right of the Crown and forming part of the Crown Estate, means the Crown Estate Commissioners, and, in relation to any other land belonging to Her Majesty in right of the Crown, means the Government department having the management of that land;
- (b) in relation to land belonging to Her Majesty in right of the Duchy of Lancaster, means the Chancellor of the Duchy;
- (c) in relation to land belonging to the Duchy of Cornwall, means such person as the Duke of Cornwall, or the possessor for the time being of the Duchy of Cornwall, appoints;
- (d) in the case of land belonging to a Government department or held in trust for Her Majesty for the purposes of a Government department, means that department;

and, if any question arises as to what authority is the appropriate authority in relation to any land, that question shall be referred to the Treasury, whose decision shall be final.

In this subsection "Government department" includes any Minister of the Crown.

51.—(1) Without prejudice to the provisions of the Acquisition of Land (Authorisation Procedure) Act 1946 with respect to notices served under that Act, where under any of the provisions of this Act a notice is required to be served on an owner of land, and the land is ecclesiastical property, a like notice shall be served on the Church Commissioners.

Ecclesiastical
Property.
1946 c. 49.

(2) Where the fee simple of any ecclesiastical property is in abeyance, the fee simple shall for the purposes of this Act be treated as being vested in the Church Commissioners.

(3) Any sum which under section 7, 9 or 46 of this Act is payable in relation to land which is ecclesiastical property, and apart from this subsection would be payable to an incumbent, shall be paid to the Church Commissioners, to be applied for the purposes for which the proceeds of a sale by agreement of the land would be applicable under any enactment or Measure authorising, or disposing of the proceeds of, such a sale.

(4) Where any sum is recoverable under section 8 of this Act in respect of land which is ecclesiastical property the Church Commissioners may apply any money or securities held by them in the payment of that sum.

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(5) In this section “ecclesiastical property” means land belonging to an ecclesiastical benefice of the Church of England, or being or forming part of a church subject to the jurisdiction of a bishop of any diocese of the Church of England or the site of such a church, or being or forming part of a burial ground subject to such jurisdiction.

Application
to the Isles of
Scilly.

52. The Secretary of State may, after consultation with the Council of the Isles of Scilly, by order provide for the application to those Isles of the provisions of this Act—

- (a) as if those Isles were a district and the Council of the Isles were the council of that district ; and
- (b) in other respects subject to such modifications as may be specified in the order.

Monuments
in territorial
waters.

53.—(1) A monument situated in, on or under the sea bed within the seaward limits of United Kingdom territorial waters adjacent to the coast of Great Britain (referred to below in this section as a monument in territorial waters) may be included in the Schedule under section 1(3) of this Act, and the remaining provisions of this Act shall extend accordingly to any such monument which is a scheduled monument (but not otherwise).

(2) The entry in the Schedule relating to any monument in territorial waters shall describe the monument as lying off the coast of England, or of Scotland, or of Wales ; and any such monument shall be treated for the purposes of this Act as situated in the country specified for the purposes of this subsection in the entry relating to the monument in the Schedule.

(3) In relation to any monument in territorial waters which is under the ownership or guardianship of the Secretary of State or any local authority by virtue of this Act, references in this Act to land associated with the monument (or to associated land) include references to any part of the sea bed occupied by the Secretary of State or by a local authority for any such purpose relating to the monument as is mentioned in section 15(1) of this Act.

(4) Without prejudice to any jurisdiction exercisable apart from this subsection, proceedings for any offence under this Act committed in United Kingdom territorial waters adjacent to the coast of Great Britain may be taken, and the offence may for all incidental purposes be treated as having been committed, in any place in Great Britain.

(5) It is hereby declared that, notwithstanding that by virtue of this section this Act may affect individuals or bodies corporate outside the United Kingdom, it applies to any individual whether or not he is a British subject, and to any body corporate whether

or not incorporated under the law of any part of the United Kingdom.

PART III

(6) A constable shall on any monument in territorial waters have all the powers, protection and privileges which he has in the area for which he acts as constable.

(7) References in this section to the sea bed do not include the seashore or any other land which, though covered (intermittently or permanently) by the sea, is within Great Britain.

Supplemental

54.—(1) Where a person enters any land in exercise of any power of entry under this Act for any of the following purposes, that is to say— Treatment and preservation of finds.

- (a) to carry out any excavations in the land or any operations affecting any ancient monument situated in, on or under the land ;
- (b) to observe any operations on the land in exercise of the power under section 6(3)(a) or (4)(b) or 38(1)(b) of this Act ; or
- (c) to carry out any archaeological examination of the land ;

he may take temporary custody of any object of archaeological or historical interest discovered during the course of those excavations or operations or (as the case may be) during the course of that examination, and remove it from its site for the purpose of examining, testing, treating, recording or preserving it.

(2) The Secretary of State or other authority by or on whose behalf the power of entry was exercised may not retain the object without the consent of the owner beyond such period as may be reasonably required for the purpose of examining and recording it and carrying out any test or treatment which appears to the Secretary of State or to that other authority to be desirable for the purpose of archaeological investigation or analysis or with a view to restoring or preserving the object.

(3) Nothing in this section shall affect any right of the Crown in relation to treasure trove.

55.—(1) If any person—

- (a) is aggrieved by any order to which this section applies and desires to question the validity of that order, on the grounds that it is not within the powers of this Act, or that any of the relevant requirements have not been complied with in relation to it ; or
- (b) is aggrieved by any action on the part of the Secretary of State to which this section applies and desires to question the validity of that action, on the ground

Proceedings for questioning validity of certain orders, etc.

PART III

that it is not within the powers of this Act, or that any of the relevant requirements have not been complied with in relation to it ;

he may, within six weeks from the relevant date, make an application under this section to the High Court or (in Scotland) to the Court of Session.

(2) This section applies to any designation order and to any order under section 33(4) of this Act varying or revoking a designation order.

(3) This section applies to action on the part of the Secretary of State of either of the following descriptions, that is to say—

(a) any decision of the Secretary of State on an application for scheduled monument consent ; and

(b) the giving by the Secretary of State of any direction under section 4 of this Act modifying or revoking a scheduled monument consent.

(4) In subsection (1) above “ the relevant date ” means—

(a) in relation to an order, the date on which notice of the making of the order is published (or, as the case may be, first published) in accordance with Schedule 2 to this Act ; and

(b) in relation to any action on the part of the Secretary of State, the date on which that action is taken.

(5) On any application under this section the High Court or (in Scotland) the Court of Session—

(a) may by interim order suspend the operation of the order or action, the validity whereof is questioned by the application, until the final determination of the proceedings ;

(b) if satisfied that the order or action in question is not within the powers of this Act, or that the interests of the applicant have been substantially prejudiced by a failure to comply with any of the relevant requirements in relation thereto, may quash that order or action in whole or in part.

(6) In this section “ the relevant requirements ” means—

(a) in relation to any order to which this section applies, any requirements of this Act or of any regulations made under this Act which are applicable to that order ; and

(b) in relation to any action to which this section applies, any requirements of this Act or of the Tribunals and Inquiries Act 1971 or of any regulations or rules made under this Act or under that Act which are applicable to that action.

(7) Except as provided by this section, the validity of any order or action to which this section applies shall not be questioned in any legal proceedings whatsoever ; but nothing in this section shall affect the exercise of any jurisdiction of any court in respect of any refusal or failure on the part of the Secretary of State to take a decision on an application for scheduled monument consent.

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56.—(1) Any notice or other document required or authorised to be served under this Act may be served either— Service of documents.

- (a) by delivering it to the person on whom it is to be served ; or
- (b) by leaving it at the usual or last known place of abode of that person or, in a case where an address for service has been given by that person, at that address ; or
- (c) by sending it in a pre-paid registered letter, or by the recorded delivery service, addressed to that person at his usual or last known place of abode or, in a case where an address for service has been given by that person, at that address ; or
- (d) in the case of an incorporated company or body, by delivering it to the secretary or clerk of the company or body at their registered or principal office, or sending it in a pre-paid registered letter, or by the recorded delivery service, addressed to the secretary or clerk of the company or body at that office.

(2) Where any such notice or document is required or authorised to be served on any person as being the owner or occupier of any monument or other land—

- (a) it may be addressed to the “owner” or (as the case may require) to the “occupier” of that monument or land (describing it) without further name or description ; and
- (b) if the usual or last known place of abode of the person in question cannot be found, it may be served by being affixed conspicuously to the monument or to some object on the site of the monument or (as the case may be) on the land.

57.—(1) For the purpose of enabling the Secretary of State or a local authority to exercise any function under this Act, the Secretary of State or the local authority may require the occupier of any land and any person who, either directly or indirectly, receives rent in respect of any land to state in writing the nature of his interest therein, and the name and address of any other person known to him as having an interest therein, whether as Power to require information as to interests in land.

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a freeholder, owner of the dominium utile, mortgagee, lessee, or otherwise.

(2) Any person who, having been required under this section to give any information, fails without reasonable excuse to give that information, shall be guilty of an offence and liable on summary conviction or, in Scotland, on conviction before a court of summary jurisdiction, to a fine not exceeding £200.

(3) Any person who, having been so required to give any information, knowingly makes any mis-statement in respect of it, shall be guilty of an offence and liable—

(a) on summary conviction or, in Scotland, on conviction before a court of summary jurisdiction, to a fine not exceeding the statutory maximum ; or

(b) on conviction on indictment to a fine.

Offences by
corporations.

58.—(1) Where an offence under this Act which has been committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, a director, manager, secretary or other similar officer of the body corporate, or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against accordingly.

(2) In subsection (1) above the expression “director”, in relation to any body corporate established by or under an enactment for the purpose of carrying on under national ownership an industry or part of an industry or undertaking, being a body corporate whose affairs are managed by the members thereof, means a member of that body corporate.

Prosecution
of offences:
Scotland.
1975 c. 21.

59. Notwithstanding anything in section 331 of the Criminal Procedure (Scotland) Act 1975, summary proceedings in Scotland for an offence under this Act may be commenced at any time within one year from the date on which evidence sufficient in the opinion of the prosecutor to warrant proceedings came to his knowledge ; and a certificate purporting to be signed by the prosecutor stating that date shall be conclusive.

Regulations
and orders.

60.—(1) Any order or regulations made under this Act may make different provision for different cases to which the order or (as the case may be) the regulations apply.

(2) Any power of the Secretary of State to make regulations under this Act, and the power to make orders under sections 3, 37, 52, 61 and 65 of this Act shall be exercisable by statutory instrument ; and any statutory instrument containing any such regulations or order, other than one containing regulations under section 19 of this Act, shall be subject to annulment in pursuance of a resolution of either House of Parliament.

61.—(1) In this Act—

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“ancient monument” has the meaning given by subsection Interpretation.
(12) below ;

“area of archaeological importance” means an area designated as such under section 33 of this Act ;

“designation order” means an order under that section ;

“enactment” includes an enactment in any local or private Act of Parliament, and an order, rule, regulation, bye-law or scheme made under an Act of Parliament ;

“flooding operations” means covering land with water or any other liquid or partially liquid substance ;

“functions” includes powers and duties ;

“guardianship deed” has the meaning given by section 12(6) of this Act ;

“land” means—

(a) in England and Wales, any corporeal hereditament ;

(b) in Scotland, any heritable property ;

including a building or a monument and, in relation to any acquisition of land, includes any interest in or right over land ;

“local authority” means—

(a) in England and Wales, the council of a county or district, the Greater London Council, the council of a London borough, and the Common Council of the City of London ; and

(b) in Scotland, the planning authority within the meaning of Part IX of the Local Government (Scotland) Act 1973 ; 1973 c. 65.

“monument” has the meaning given by subsection (7) below ;

“owner”, in relation to any land in England and Wales means (except for the purposes of paragraph 2(1) of Schedule 1 to this Act and any regulations made for the purposes of that paragraph) a person, other than a mortgagee not in possession, who, whether in his own right or as trustee for any other person, is entitled to receive the rack rent of the land, or where the land is not let at a rack rent, would be so entitled if it were so let ;

“possession” includes receipt of rents and profits or the right to receive rents and profits (if any) ;

“prescribed” means prescribed by regulations made by the Secretary of State ;

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“the Schedule” has the meaning given by section 1(1) of this Act ;

“scheduled monument” has the meaning given by section 1(11) of this Act and references to “scheduled monument consent” shall be construed in accordance with section 2(3) and 3(5) of this Act ;

“the statutory maximum” means—

1977 c. 45.

(a) in England and Wales the prescribed sum within the meaning of section 28 of the Criminal Law Act 1977 (that is to say, £1,000 or another sum fixed by order under section 61 of that Act to take account of changes in the value of money) ; and

(b) in Scotland—

1975 c. 21.

(i) on conviction in the sheriff court, the prescribed sum within the meaning of section 289B of the Criminal Procedure (Scotland) Act 1975 (that is to say, £1,000 or another sum fixed by order under section 289D of that Act for that purpose) ;

(ii) on conviction in the district court, the sum of £200 ;

“tipping operations” means tipping soil or spoil or depositing building or other materials or matter (including waste materials or refuse) on any land ; and

“works” includes operations of any description and, in particular (but without prejudice to the generality of the preceding provision) flooding or tipping operations and any operations undertaken for purposes of agriculture (within the meaning of the Town and Country Planning Act 1971 or, as regards Scotland, the Town and Country Planning (Scotland) Act 1972) or forestry (including afforestation).

1971 c. 78.]

1972 c. 52.

(2) In this Act “statutory undertakers” means—

(a) persons authorised by any enactment to carry on any railway, light railway, tramway, road transport, water transport, canal, inland navigation, dock, harbour, pier or lighthouse undertaking, or any undertaking for the supply of electricity, gas, hydraulic power or water ;

(b) the British Airports Authority, the Civil Aviation Authority, the National Coal Board, the Post Office and any other authority, body or undertakers which by virtue of any enactment are to be treated as statutory undertakers for any of the purposes of the Town and Country Planning Act 1971 or of the Town and Country Planning (Scotland) Act 1972 ; and

- (c) any other authority, body or undertakers specified in an order made by the Secretary of State under this paragraph.

(3) For the purposes of sections 14(1) and 21(2) of this Act and paragraph 6(1)(b) and (2)(b) of Schedule 3 to this Act a person shall be taken to be immediately affected by the operation of a guardianship deed relating to any land if he is bound by that deed and is in possession or occupation of the land.

(4) For the purposes of this Act “archaeological investigation” means any investigation of any land, objects or other material for the purpose of obtaining and recording any information of archaeological or historical interest and (without prejudice to the generality of the preceding provision) includes in the case of an archaeological investigation of any land—

- (a) any investigation for the purpose of discovering and revealing and (where appropriate) recovering and removing any objects or other material of archaeological or historical interest situated in, on or under the land ; and
- (b) examining, testing, treating, recording and preserving any such objects or material discovered during the course of any excavations or inspections carried out for the purposes of any such investigation.

(5) For the purposes of this Act, an archaeological examination of any land means any examination or inspection of the land (including any buildings or other structures thereon) for the purpose of obtaining and recording any information of archaeological or historical interest.

(6) In this Act references to land associated with any monument (or to associated land) shall be construed in accordance with section 15(6) of this Act.

(7) “Monument” means (subject to subsection (8) below)—

- (a) any building, structure or work, whether above or below the surface of the land, and any cave or excavation ;
- (b) any site comprising the remains of any such building, structure or work or of any cave or excavation ; and
- (c) any site comprising, or comprising the remains of, any vehicle, vessel, aircraft or other movable structure or part thereof which neither constitutes nor forms part of any work which is a monument within paragraph (a) above ;

and any machinery attached to a monument shall be regarded as part of the monument if it could not be detached without being dismantled.

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(8) Subsection (7)(a) above does not apply to any ecclesiastical building for the time being used for ecclesiastical purposes, and subsection (7)(c) above does not apply—

(a) to a site comprising any object or its remains unless the situation of that object or its remains in that particular site is a matter of public interest ;

(b) to a site comprising, or comprising the remains of, any vessel which is protected by an order under section 1 of the Protection of Wrecks Act 1973 designating an area round the site as a restricted area.

1973 c. 33.

(9) For the purposes of this Act, the site of a monument includes not only the land in or on which it is situated but also any land comprising or adjoining it which appears to the Secretary of State or a local authority, in the exercise in relation to that monument of any of their functions under this Act, to be essential for the monument's support and preservation.

(10) References in this Act to a monument include references—

(a) to the site of the monument in question ; and

(b) to a group of monuments or any part of a monument or group of monuments.

(11) References in this Act to the site of a monument—

(a) are references to the monument itself where it consists of a site ; and

(b) in any other case include references to the monument itself.

(12) “ Ancient monument ” means—

(a) any scheduled monument ; and

(b) any other monument which in the opinion of the Secretary of State is of public interest by reason of the historic, architectural, traditional, artistic or archaeological interest attaching to it.

(13) In this section “ remains ” includes any trace or sign of the previous existence of the thing in question.

Special
provision for
Scotland.
1978 c. 51.

62.—(1) This Act shall be treated as if it had been passed before the Scotland Act 1978 for the purposes of the following provisions of that Act (which adapt certain provisions of earlier legislation in their application to devolved matters)—

section 21(2) (exercise by a Scottish Secretary of executive powers and duties of Ministers of the Crown) ;

section 22(1) and (2) (powers of Scottish Secretary and Assembly with respect to subordinate instruments) ;

section 60(1) (money formerly payable out of or into United Kingdom funds to be payable out of or into the Scottish Consolidated Fund) ;

section 74(2) (construction of references to property vested in a Government department) ;

section 78 (reports formerly required to be laid before Parliament to be laid instead before the Scottish Assembly) ; and

section 82(1) and (3) (construction of references to Ministers of the Crown and power to make consequential amendments in earlier legislation).

(2) The reference in Schedule 5 to that Act to sections 4 to 6 of the Historic Buildings and Ancient Monuments Act 1953 shall be construed as including a reference to the section 4A inserted in the said Act of 1953 by section 48(2) of this Act.

(3) Part III of Schedule 10 to the Scotland Act 1978 (which lists devolved and non-devolved matters dealt with in enactments) shall be amended by the addition at the end thereof of the following entry—

“The Ancient Monuments and Archaeological Areas Act 1979.	The function under section 44(9) in respect of land held by excepted statutory undertakers and the power of the Treasury to determine questions under section 50(4) are not included.”
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(4) In this Act, in relation to any land in Scotland, “occupier” means an occupier with an interest in that land which is heritable and, if there is no such occupier, the owner thereof shall be deemed to be the occupier.

(5) In relation to land in Scotland, any reference in this Act—

- (a) to a mortgage shall be construed as a reference to a heritable security ;
- (b) to a mortgagee shall be construed as a reference to a creditor in a heritable security ; and
- (c) to a first mortgagee shall be construed as a reference to a creditor in a heritable security which ranks prior to any other heritable security over the same land.

63.—(1) This Act shall be treated as if it had been passed before the Wales Act 1978 for the purposes of the following provisions of that Act (which adapt certain provisions of earlier legislation in relation to the exercise by the Welsh Assembly of its functions)—

section 55 (money formerly payable out of or into United Kingdom funds to be payable out of or into the Welsh Consolidated Fund)

Special provision for Wales.
1978 c. 52.

PART III

section 74 (construction of references to Ministers of the Crown and to property vested in a Government department) ;

section 76 (reports formerly required to be laid before Parliament to be sent instead to the Welsh Assembly) ; and

section 77(2) (power to make consequential amendments in earlier legislation).

1972 c. 42.

(2) In Part VIII of Schedule 2 to that Act (Land Use and Development), in the entry relating to the Town and Country Planning (Amendment) Act 1972, for the words "section 10" there shall be substituted the words "sections 10 and 10A".

(3) In Part XII of Schedule 2 to the Wales Act 1978 (Ancient Monuments and Historic Buildings), for the entry relating to the Ancient Monuments Acts 1913 to 1974 there shall be substituted the following entry—

"Enactment

The Ancient Monuments and
Archaeological Areas Act
1979.

Excluded functions

The function under section
44(9) in respect of land held
by excepted statutory under-
takers.

The functions under section 50
except so far as exercisable
in relation to land vested in
or held for the purposes of
the Assembly.

The function under section
61(2)(c)."

1953 c. 49.

(4) The references in Part XII of Schedule 2 and in Schedule 3 to that Act to Part I and sections 4 to 6 of the Historic Buildings and Ancient Monuments Act 1953 respectively shall each be construed as including a reference to the section 4A inserted in the said Act of 1953 by section 48(2) of this Act.

1913 c. 32.

(5) In Schedule 11 to that Act, paragraph 2 (which relates to the Ancient Monuments Consolidation and Amendment Act 1913) shall be omitted.

Transitional
provisions,
consequential
amendments
and repeals.

64.—(1) Schedule 3 to this Act shall have effect for the purposes of the transition to the provisions of this Act from the law previously in force.

(2) The enactments specified in Schedule 4 to this Act shall have effect subject to the amendments specified in that Schedule, being amendments consequential on the provisions of this Act.

(3) The enactments specified in Schedule 5 to this Act are hereby repealed to the extent specified in the third column of that Schedule.

65.—(1) This Act may be cited as the Ancient Monuments and Archaeological Areas Act 1979.

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Short title,
commencement
and extent.

(2) This Act shall come into force on such day as may be appointed by order of the Secretary of State, and different days may be appointed for different purposes; and a reference in any provision of this Act to the commencement of this Act is a reference to the day appointed for the coming into force of that provision.

(3) This Act does not extend to Northern Ireland.

SCHEDULES

Sections 2 and 4.

SCHEDULE 1**CONTROL OF WORKS AFFECTING SCHEDULED MONUMENTS****PART I****APPLICATIONS FOR SCHEDULED MONUMENT CONSENT**

1.—(1) Provision may be made by regulations under this Act with respect to the form and manner in which applications for scheduled monument consent are to be made, the particulars to be included therein and the information to be provided by applicants or (as the case may be) by the Secretary of State in connection therewith.

(2) Any scheduled monument consent (including scheduled monument consent granted by order under section 3 of this Act) shall (except so far as it otherwise provides) enure for the benefit of the monument and of all persons for the time being interested therein.

2.—(1) The Secretary of State may refuse to entertain an application for scheduled monument consent unless it is accompanied by one or other of the following certificates signed by or on behalf of the applicant, that is to say—

- (a) a certificate stating that, at the beginning of the period of twenty-one days ending with the application, no person other than the applicant was the owner of the monument ;
- (b) a certificate stating that the applicant has given the requisite notice of the application to all the persons other than the applicant who, at the beginning of that period, were owners of the monument ;
- (c) a certificate stating that the applicant is unable to issue a certificate in accordance with either of the preceding paragraphs, that he has given the requisite notice of the application to such one or more of the persons mentioned in paragraph (b) above as are specified in the certificate, that he has taken such steps as are reasonably open to him to ascertain the names and addresses of the remainder of those persons and that he has been unable to do so ;
- (d) a certificate stating that the applicant is unable to issue a certificate in accordance with paragraph (a) above, that he has taken such steps as are reasonably open to him to ascertain the names and addresses of the persons mentioned in paragraph (b) above and that he has been unable to do so.

(2) Any certificate issued for the purposes of sub-paragraph (1) above—

- (a) shall contain such further particulars of the matters to which the certificate relates as may be prescribed by regulations made for the purposes of this paragraph ; and

(b) shall be in such form as may be so prescribed ;

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and any reference in that sub-paragraph to the requisite notice is a reference to a notice in the form so prescribed.

(3) Regulations made for the purposes of this paragraph may make provision as to who, in the case of any monument, is to be treated as the owner for those purposes.

(4) If any person issues a certificate which purports to comply with the requirements of this paragraph and which contains a statement which he knows to be false or misleading in a material particular, or recklessly issues a certificate which purports to comply with those requirements and which contains a statement which is false or misleading in a material particular, he shall be guilty of an offence and liable on summary conviction or, in Scotland, on conviction before a court of summary jurisdiction, to a fine not exceeding £200.

3.—(1) The Secretary of State may grant scheduled monument consent in respect of all or any part of the works to which an application for scheduled monument consent relates.

(2) Before determining whether or not to grant scheduled monument consent on any application therefor, the Secretary of State shall either—

(a) cause a public local inquiry to be held ; or

(b) afford to the applicant, and to any other person to whom it appears to the Secretary of State expedient to afford it, an opportunity of appearing before and being heard by a person appointed by the Secretary of State for the purpose.

(3) Before determining whether or not to grant scheduled monument consent on any application therefor the Secretary of State—

(a) shall in every case consider any representations made by any person with respect to that application before the time when he considers his decision thereon (whether in consequence of any notice given to that person in accordance with any requirements of regulations made by virtue of paragraph 2 above or of any publicity given to the application by the Secretary of State, or otherwise) ; and

(b) shall also, if any inquiry or hearing has been held in accordance with sub-paragraph (2) above, consider the report of the person who held it.

(4) The Secretary of State shall serve notice of his decision with respect to the application on the applicant and on every person who has made representations to him with respect to the application.

4.—(1) Subsections (2) to (5) of section 250 of the Local Government Act 1972 (evidence and costs at local inquiries) shall apply to a public local inquiry held in pursuance of paragraph 3(2) above in relation to a monument situated in England and Wales as they apply where a Minister or the Secretary of State causes an inquiry to be held under subsection (1) of that section. 1972 c. 70.

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1973 c. 65.

(2) Subsections (2) to (8) of section 210 of the Local Government (Scotland) Act 1973 (evidence and expenses at local inquiries) shall apply to a public local inquiry held in pursuance of paragraph 3(2) above in relation to a monument situated in Scotland as they apply where a Minister or the Secretary of State causes an inquiry to be held under sub-section (1) of that section.

PART II

MODIFICATION AND REVOCATION OF SCHEDULED MONUMENT CONSENT

5.—(1) Before giving a direction under section 4 of this Act modifying or revoking a scheduled monument consent the Secretary of State shall serve a notice of proposed modification or revocation on—

- (a) the owner of the monument and (if the owner is not the occupier) the occupier of the monument ; and
- (b) any other person who in the opinion of the Secretary of State would be affected by the proposed modification or revocation.

(2) A notice under this paragraph shall—

- (a) contain a draft of the proposed modification or revocation and a brief statement of the reasons therefor ; and
- (b) specify the time allowed by sub-paragraph (5) below for making objections to the proposed modification or revocation and the manner in which any such objections can be made.

(3) Where the effect of a proposed modification (or any part of it) would be to exclude any works from the scope of the scheduled monument consent in question or in any manner to affect the execution of any of the works to which the consent relates, the notice under this paragraph relating to that proposed modification shall indicate that the works affected must not be executed after the receipt of the notice or (as the case may require) must not be so executed in a manner specified in the notice.

(4) A notice of proposed revocation under this paragraph shall indicate that the works to which the scheduled monument consent in question relates must not be executed after receipt of the notice.

(5) A person served with a notice under this paragraph may make an objection to the proposed modification or revocation at any time before the end of the period of twenty-eight days beginning with the date on which the notice was served.

6.—(1) If no objection to a proposed modification or revocation is duly made by a person served with notice thereof in accordance with paragraph 5 above, or if all objections so made are withdrawn, the Secretary of State may give a direction under section 4 of this Act modifying or revoking the scheduled monument consent in question in accordance with the notice.

(2) If any objection duly made as mentioned in sub-paragraph (1) above is not withdrawn, then, before giving a direction under section

4 of this Act with respect to the proposed modification or revocation, the Secretary of State shall either—

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- (a) cause a public local inquiry to be held ; or
- (b) afford to any such person an opportunity of appearing before and being heard by a person appointed by the Secretary of State for the purpose.

(3) If any person by whom an objection has been made avails himself of the opportunity of being heard, the Secretary of State shall afford to each other person served with notice of the proposed modification or revocation in accordance with paragraph 5 above, and to any other person to whom it appears to the Secretary of State expedient to afford it, an opportunity of being heard on the same occasion.

(4) Before determining in a case within sub-paragraph (2) above whether to give a direction under section 4 of this Act modifying or revoking the scheduled monument consent in accordance with the notice, the Secretary of State—

- (a) shall in every case consider any objections duly made as mentioned in sub-paragraph (1) above and not withdrawn ; and
- (b) shall also, if any inquiry or hearing has been held in accordance with sub-paragraph (2) above, consider the report of the person who held it.

(5) After considering any objections and report he is required to consider in accordance with sub-paragraph (4) above the Secretary of State may give a direction under section 4 of this Act modifying or revoking the scheduled monument consent either in accordance with the notice or with any variation appearing to him to be appropriate.

7. As soon as may be after giving a direction under section 4 of this Act the Secretary of State shall send a copy of the direction to each person served with notice of its proposed effect in accordance with paragraph 5 above and to any other person afforded an opportunity of being heard in accordance with paragraph 6(3) above.

8.—(1) Where in accordance with sub-paragraph (3) of paragraph 5 above a notice under that paragraph indicates that any works specified in the notice must not be executed after receipt of the notice, the works so specified shall not be regarded as authorised under Part I of this Act at any time after the relevant service date.

(2) Where in accordance with that sub-paragraph a notice under that paragraph indicates that any works specified in the notice must not be executed after receipt of the notice in a manner so specified, the works so specified shall not be regarded as authorised under Part I of this Act if executed in that manner at any time after the relevant service date.

SCH. 1

(3) Where in accordance with sub-paragraph (4) of paragraph 5 above a notice under that paragraph indicates that the works to which the scheduled monument consent relates must not be executed after receipt of the notice, those works shall not be regarded as authorised under Part I of this Act at any time after the relevant service date.

(4) The preceding provisions of this paragraph shall cease to apply in relation to any works affected by a notice under paragraph 5 above—

- (a) if within the period of twenty-one months beginning with the relevant service date the Secretary of State gives a direction with respect to the modification or revocation proposed by that notice in accordance with paragraph 6 above, on the date when he gives that direction ;
- (b) if within that period the Secretary of State serves notice on the occupier or (if there is no occupier) on the owner of the monument that he has determined not to give such a direction, on the date when he serves that notice ; and
- (c) in any other case, at the end of that period.

(5) In this paragraph “the relevant service date” means, in relation to a notice under paragraph 5 above with respect to works affecting any monument, the date on which that notice was served on the occupier or (if there is no occupier) on the owner of the monument.

1972 c. 70.

9.—(1) Subject to sub-paragraph (2) below, subsections (2) to (5) of section 250 of the Local Government Act 1972 (evidence and costs at local inquiries) shall apply to a public local inquiry held in pursuance of paragraph 6(2) above as they apply where a Minister or the Secretary of State causes an inquiry to be held under subsection (1) of that section.

(2) Subsection (4) of that section (costs of the Minister causing the inquiry to be held to be defrayed by such local authority or party to the inquiry as the Minister may direct) shall not apply except in so far as the Secretary of State is of opinion, having regard to the object and result of the inquiry, that his costs should be defrayed by any party thereto.

1973 c. 65.

(3) In the application of this paragraph to Scotland, in sub-paragraph (1) for the words “subsections (2) to (5) of section 250 of the Local Government Act 1972 (evidence and costs at local inquiries)” there shall be substituted the words “subsections (2) to (8) of section 210 of the Local Government (Scotland) Act 1973 (evidence and expenses at local inquiries)”, and in sub-paragraph (2) for the words “subsection (4) of that section (costs)” there shall be substituted the words “subsection (7) of that section (expenses)”.

SCHEDULE 2

Section 33.

DESIGNATION ORDERS

Designation orders by the Secretary of State

1.—(1) A designation order made by the Secretary of State shall describe by reference to a map the area affected.

(2) The map shall be to such a scale, and the order in such form, as the Secretary of State considers appropriate.

2. Before making a designation order the Secretary of State shall—

- (a) consult each of the local authorities concerned ; and
- (b) publish notice of his proposal to make the order ;

in accordance with paragraph 3 below.

3.—(1) The consultation required by sub-paragraph (a) of paragraph 2 above shall precede the publication of the notice required by sub-paragraph (b) of that paragraph.

(2) The notice required by paragraph 2(b) above—

- (a) shall be published in two successive weeks in the London Gazette and in one or more local newspapers circulating in the locality in which the area affected is situated ;
- (b) shall state that the Secretary of State proposes to make the order, describing the area affected and the effect of the order ; and
- (c) shall indicate where (in accordance with paragraphs 4 and 5 below) a copy of the draft order and of the map to which it refers may be inspected.

4. Copies of the draft order and of the map to which it refers—

- (a) shall be deposited with each of the local authorities concerned on or before the date on which notice of the Secretary of State's proposal to make the order is first published in accordance with paragraph 3(2)(a) above ; and
- (b) shall be kept available for public inspection by each of those authorities, free of charge, at reasonable hours and at a convenient place, until the Secretary of State makes the order or notifies the local authority in question that he has determined not to make it.

5. Copies of the draft order and of the map to which it refers shall similarly be kept available by the Secretary of State, until he makes the order or determines not to make it.

6. The Secretary of State may make the order, either without modifications or with such modification only as consists in reducing the area affected, at any time after the end of the period of six weeks beginning with the date on which notice of his proposal to make the order is first published in accordance with paragraph 3(2)(a) above.

- SCH. 2 7. On making the order, the Secretary of State shall—
- (a) publish notice in two successive weeks in the London Gazette and in one or more local newspapers circulating in the locality in which the area affected is situated, stating that the order has been made and describing the area affected and the effect of the order ; and
 - (b) deposit a copy of the order and of the map to which it refers with each local authority concerned.

Designation orders by a local authority

8.—(1) A designation order made by a local authority shall describe by reference to a map the area affected.

(2) The map shall be to such a scale, and the order in such form as may be prescribed.

9. Before making a designation order a local authority shall—

- (a) consult any other local authority concerned ; and
- (b) publish notice of their proposal to make the order ;

in accordance with paragraph 10 below.

10.—(1) The consultation required by sub-paragraph (a) of paragraph 9 above shall precede the publication of the notice required by sub-paragraph (b) of that paragraph.

(2) The notice required by paragraph 9(b) above shall be in the prescribed form and shall otherwise comply with paragraph 3(2) above (with the necessary modifications).

11. Copies of the draft order and of the map to which it refers—

- (a) shall be deposited with each of the local authorities concerned (other than the local authority proposing to make the order) on or before the date on which notice of the proposal to make the order is first published in accordance with paragraph 3(2)(a) above as applied by paragraph 10 above ; and
- (b) shall be kept available for public inspection by each of the local authorities concerned, free of charge at reasonable hours and at a convenient place, until the local authority proposing to make the order either make it or determine not to make it and, in the case of any other local authority concerned, notify that local authority of their determination.

12. The local authority may make the order, either without modifications or with such modification only as consists in reducing the area affected, and submit it to the Secretary of State for confirmation, at any time after the end of the period of six weeks beginning with the date on which notice of their proposal to make the order is first published in accordance with paragraph 3(2)(a) above as applied by paragraph 10 above.

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13. A designation order made by a local authority shall not take effect unless it is confirmed by the Secretary of State, and the Secretary of State may confirm any such order either without modifications or with such modification only as consists in reducing the area affected.

14. If the Secretary of State confirms the order the local authority shall on being notified that the order has been confirmed—

- (a) publish notice of the making of the order in the manner and form prescribed ; and
- (b) deposit a copy of the order and of the map to which it refers with any other local authority concerned.

15. The Secretary of State may by regulations prescribe the procedure to be followed by a local authority in submitting a designation order for confirmation by the Secretary of State.

Operation of designation orders

16.—(1) A designation order made by the Secretary of State shall not come into operation until the end of the period of six months beginning with the date on which it is made.

(2) A designation order made by a local authority and confirmed by the Secretary of State shall not come into operation until the end of the period of six months beginning with the date on which it is confirmed.

Variation and revocation of designation orders

17.—(1) An order varying or revoking a designation order shall describe by reference to a map the area affected by the designation order and (in the case of an order varying a designation order) the reduction of that area made by the order.

(2) The map shall be to such a scale, and the order in such form, as the Secretary of State considers appropriate.

18. Before and on making an order varying or revoking a designation order the Secretary of State shall follow the procedure laid down for the making by him of a designation order, and paragraphs 2 to 7 above shall accordingly apply in any such case (taking references to the area affected as references to the area affected by the designation order).

Scotland

19. In relation to a designation order relating to an area in Scotland, references in this Schedule to the London Gazette shall be construed as references to the Edinburgh Gazette.

Interpretation

20.—(1) In this Schedule “the area affected” means, in relation to a designation order, the area to which the order for the time being relates.

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(2) For the purposes of this Schedule a local authority is a local authority concerned in relation to a designation order (or in relation to an order varying or revoking a designation order) if the area affected by the designation order, or any part of that area, is within the area of that local authority.

Section 64(1).

SCHEDULE 3

TRANSITIONAL PROVISIONS

1953 c. 49.

1.—(1) Where an interim preservation notice is in force with respect to any monument immediately before the commencement of this Act, sections 10(3)(a) and (c) and 12(1), (2)(b), (3)(b) and (4) of the Historic Buildings and Ancient Monuments Act 1953 shall continue to apply to the notice and monument respectively as if this Act had not been passed, unless and until the monument is included in the Schedule under section 1(3) of this Act.

(2) So long as by virtue of sub-paragraph (1) above section 12(1) of the Historic Buildings and Ancient Monuments Act 1953 continues to apply after the commencement of this Act to any monument which is under guardianship by virtue of this Act, section 28 of this Act shall have effect in relation to that monument as if for the reference in subsection (2) of that section to a scheduled monument consent there were substituted a reference to the consent of the Secretary of State under section 12(1).

2.—(1) Subject to sub-paragraph (2) below, where a guardianship order made under section 12(5) of the Historic Buildings and Ancient Monuments Act 1953 is in force immediately before the commencement of this Act that order shall continue in force notwithstanding the repeal by this Act of section 12(5), and the provisions of this Act shall apply while the order is in force as if the Secretary of State had been constituted guardian of the monument by a deed not containing any restriction not contained in the order and executed by all the persons who, at the time when the order was made, were able by deed to constitute the Secretary of State guardian of the monument.

(2) A guardianship order continued in force by this paragraph may be revoked at any time by the Secretary of State.

1931 c. 16.

3.—(1) Where within the period of three months immediately preceding the commencement of this Act a person has given notice in accordance with section 6(2) of the Ancient Monuments Act 1931 of his intention to execute or permit to be executed any such work in relation to a monument as is there mentioned the notice shall have effect for the purposes of this Act as an application for scheduled monument consent for the execution of that work.

(2) Where—

(a) a monument becomes a schedule monument under this Act; and

- (b) before it is included in the Schedule any person has applied for the consent of the Secretary of State for the execution of any works affecting the monument which would otherwise be prohibited by section 12(1) of the Historic Buildings and Ancient Monuments Act 1953 (consent required for certain works in relation to a monument subject to an interim preservation notice or preservation order);
- SCH. 3
1953 c. 49.

then, in a case where the Secretary of State's decision on the application has not been notified to the person in question before the monument is included in the Schedule, the application shall have effect for the purposes of this Act as an application for scheduled monument consent for the execution of those works.

(3) The Secretary of State shall consider and determine any application for scheduled monument consent which has effect as such by virtue of this paragraph notwithstanding that any requirements of regulations made by virtue of paragraph 1 or any requirements of paragraph 2 of Schedule 1 to this Act are not satisfied in relation to that application.

4.—(1) Subject to the following provisions of this paragraph, where a person has given notice as mentioned in paragraph 3(1) above with respect to any work more than three months before the commencement of this Act, the notice shall have effect for the purposes of this Act as if it were a scheduled monument consent for the execution of that work granted by the Secretary of State under section 2 of this Act on the date of the commencement of this Act (and it may be modified or revoked by the Secretary of State under section 4 of this Act accordingly).

(2) This paragraph does not apply in any case where an interim preservation notice or a preservation order is in force with respect to the monument in question immediately before the commencement of this Act.

(3) A scheduled monument consent which has effect as such by virtue of this paragraph shall not cease to have effect by virtue of section 4(1) of this Act if any of the work to which it relates has been executed or started before the commencement of this Act.

5.—(1) Subject to sub-paragraph (2) below, where—

(a) a monument becomes a scheduled monument under this Act; and

(b) before it is included in the Schedule the Secretary of State has granted consent for the execution of any works affecting the monument under section 12(1) of the Historic Buildings and Ancient Monuments Act 1953;

that consent shall have effect for the purposes of this Act as if it were a scheduled monument consent for the execution of those works granted by the Secretary of State under section 2 of this Act on the date when the monument became a scheduled monument (and it may be modified or revoked by the Secretary of State under section 4 of this Act accordingly).

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(2) A scheduled monument consent which has effect as such by virtue of this paragraph shall not cease to have effect by virtue of section 4(1) of this Act if any of the works to which it relates have been executed or started before the monument becomes a scheduled monument.

6.—(1) Section 13(2) of this Act shall not apply to any monument of which the Secretary of State or a local authority have been constituted guardians before the commencement of this Act, except where either—

- (a) the guardianship deed provided for control and management of the monument by the guardians ; or
- (b) the persons for the time being immediately affected by the operation of the guardianship deed have consented to the exercise of control and management of the monument by the guardians.

1913 c. 32.

(2) Section 19(1) of this Act shall not apply to any monument of which the Secretary of State or a local authority had been constituted guardians before 15th August 1913 (being the date of commencement of the Ancient Monuments Consolidation and Amendment Act 1913), except where either—

- (a) the guardianship deed provided for public access to the monument ; or
- (b) the persons for the time being immediately affected by the operation of the guardianship deed have consented to the public having access to the monument.

(3) Where any land adjoining or adjacent to a monument (in addition to its site) was acquired or taken into guardianship before the commencement of this Act under any enactment repealed by this Act, it shall be regarded for the purposes of this Act as having been acquired or taken into guardianship for a purpose relating to that monument by virtue of section 15 of this Act.

1972 c. 43.

7. Notwithstanding the repeal by this Act of the Field Monuments Act 1972, the provisions of that Act shall continue to apply in relation to any acknowledgement payment agreement within the meaning of that Act which is in force immediately before the commencement of this Act.

8. Any reference in any document (including an enactment) to an enactment repealed by this Act shall be construed as or (as the case may be) as including a reference to the corresponding enactment in this Act.

1978 c. 30.

9. Nothing in the preceding provisions of this Schedule shall be construed as prejudicing the effect of section 16 or 17 of the Interpretation Act 1978 (effect of repeals).

10. In this Schedule—

1953 c. 49.

“interim preservation notice” means a notice served under section 10(1) of the Historic Buildings and Ancient Monuments Act 1953 ; and

“preservation order” means an order made under section 11(1) of that Act. SCH. 3

SCHEDULE 4

Section 64(2).

CONSEQUENTIAL AMENDMENTS

1. In section 44(3) of the Electricity (Supply) Act 1926 (protection of ancient monuments from prejudicial effect of placing electric lines above ground), for the words “the Ancient Monuments Consolidation and Amendment Act 1913” there shall be substituted the words “the Ancient Monuments and Archaeological Areas Act 1979”.

2. In section 47(d) of the Coast Protection Act 1949 (saving for law relating to ancient monuments), for the words “the Ancient Monuments Acts 1913 to 1931” there shall be substituted the words “the Ancient Monuments and Archaeological Areas Act 1979”.

3.—(1) In sections 5(2)(b) and 8(1)(c) of the Historic Buildings and Ancient Monuments Act 1953, for the words “the Ancient Monuments Consolidation and Amendment Act 1913” there shall be substituted the words “the Ancient Monuments and Archaeological Areas Act 1979”.

(2) In section 8(4) of that Act, for the words “the said Act of 1913” there shall be substituted the words “the said Act of 1979”.

4. In section 9(1) of the Coal Mining (Subsidence) Act 1957 (special provision for subsidence damage in case of ancient monuments, etc.), for paragraphs (a) and (b) there shall be substituted the following paragraphs—

“(a) for the time being included in the Schedule of monuments compiled and maintained under section 1 of the Ancient Monuments and Archaeological Areas Act 1979 ; or

(b) notified to the Board by the Secretary of State as an ancient monument within the meaning of that Act for the time being under the care of the Secretary of State”.

5. In section 6(4)(b) of the Land Powers (Defence) Act 1958 (restriction on use of land for training purposes)—

(a) for the words from “a list” to “1913” there shall be substituted the words “the Schedule compiled and maintained under section 1 of the Ancient Monuments and Archaeological Areas Act 1979” ; and

(b) the words from “or which” to “1953” shall cease to have effect, except in relation to a monument to which paragraph 1(1) of Schedule 3 to this Act applies.

6. In section 17(2) of the Building (Scotland) Act 1959 (requirements with respect to operations under that Act to be subject to special controls for ancient monuments and historic buildings)—

(a) for paragraph (a) there shall be substituted the following paragraph—

“(a) a building which is for the time being included in the Schedule of monuments compiled and maintained

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under section 1 of the Ancient Monuments and Archaeological Areas Act 1979 ”;

(b) paragraph (d) and the words “ or, as the case may be, the said Act of 1953 ” shall cease to have effect, except in relation to a monument to which paragraph 1(1) of Schedule 3 to this Act applies ; and

(c) for the words “ the said Act of 1931 ” there shall be substituted the words “ the said Act of 1979 or ”.

1961 c. 41.

7. In section 3(3)(a) of the Flood Prevention (Scotland) Act 1961 (Act not to authorise contraventions of certain enactments), for the words “ the Ancient Monuments Acts 1913 to 1953 ” there shall be substituted the words “ the Ancient Monuments and Archaeological Areas Act 1979 ”.

1964 No. 5.

8. In section 2(5) of the Faculty Jurisdiction Measure 1964 (limit on authority conferred by faculty for demolition of church), for the words “ the Ancient Monuments Acts 1913 to 1953 ” there shall be substituted the words “ the Ancient Monuments and Archaeological Areas Act 1979 ”.

1966 c. 4.

9. In section 7(8) of the Mines (Working Facilities and Support) Act 1966 (right to apply for restrictions on working minerals to secure support)—

(a) for the words “ the Ancient Monuments Consolidation and Amendment Act 1913 ” there shall be substituted the words “ the Ancient Monuments and Archaeological Areas Act 1979 ”; and

(b) the words “ or Part II of the Historic Buildings and Ancient Monuments Act 1953 ” shall be omitted.

1967 c. 9.

10. In paragraph 2(d) of Schedule 1 to the General Rate Act 1967 (exemption from rates for certain unoccupied property)—

(a) the words from “ is the ” to “ or ” shall cease to have effect, except in relation to a monument to which paragraph 1(1) of Schedule 3 to this Act applies ; and

(b) for the words from “ a list ” to “ those Acts ” there shall be substituted the words “ the Schedule compiled and maintained under section 1 of the Ancient Monuments and Archaeological Areas Act 1979 ”.

1971 c. 78.

11. In sections 56(1) and 58(2) of the Town and Country Planning Act 1971 (exclusion of certain buildings from control of works under sections 55 and 58 respectively), for paragraphs (b) and (c) there shall be substituted the following paragraph—

“ (b) a building for the time being included in the schedule of monuments compiled and maintained under section 1 of the Ancient Monuments and Archaeological Areas Act 1979 ”.

1972 c. 52.

12. In sections 54(1) and 56(2) of the Town and Country Planning (Scotland) Act 1972 (exclusion of certain buildings from control of

works under sections 53 and 56 respectively) for paragraphs (b) and (c) there shall be substituted the following paragraph— SCH. 4

“(b) a building for the time being included in the Schedule of monuments compiled and maintained under section 1 of the Ancient Monuments and Archaeological Areas Act 1979”.

13. In section 131(2) of the Local Government Act 1972 (general 1972 c. 70. powers of local authority with respect to dealings in land not to affect certain enactments), for paragraph (f) there shall be substituted the following paragraph—

“(f) the Ancient Monuments and Archaeological Areas Act 1979”.

14. In section 182(1) of the Local Government (Scotland) Act 1973 1973 c. 65. (functions of local authorities under the Ancient Monuments Acts to be district planning functions), for the words “the Ancient Monuments Acts 1913 and 1931” there shall be substituted the words “the Ancient Monuments and Archaeological Areas Act 1979”.

15. In paragraph 17(3)(c) of Schedule 4 to the Finance Act 1975 1975 c. 7. (acceptance of certain objects in satisfaction of tax), for the words “the Ancient Monuments Consolidation and Amendment Act 1913” there shall be substituted the words “the Ancient Monuments and Archaeological Areas Act 1979”.

16. In section 111 of the Land Drainage Act 1976 (protection of 1976 c. 70. ancient monuments), for the words “the Ancient Monuments Acts 1913 to 1972” there shall be substituted the words “the Ancient Monuments and Archaeological Areas Act 1979”.

Section 64(3).

SCHEDULE 5

ENACTMENTS REPEALED

Chapter	Short Title	Extent of Repeal
45 & 46 Vict. c. 73.	The Ancient Monuments Protection Act 1882.	The Schedule.
3 & 4 Geo. 5. c. 32.	The Ancient Monuments Consolidation and Amendment Act 1913.	The whole Act.
21 & 22 Geo. 5. c. 16.	The Ancient Monuments Act 1931.	The whole Act.
9 & 10 Geo. 6. c. 49.	The Acquisition of Land (Authorisation Procedure) Act 1946.	In section 1(2), paragraph (c) and the word "or" immediately preceding it. In section 8(1), the definition of "ancient monument". In Schedule 1, paragraph 12.
10 & 11 Geo. 6. c. 42.	The Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947.	In section 1(2), paragraph (c) and the word "or" immediately preceding it. In section 7(1), the definition of "ancient monument". In Schedule 1, paragraph 12.
1 & 2 Eliz. 2. c. 49.	The Historic Buildings and Ancient Monuments Act 1953.	Parts II and III. Section 20. Section 22(2). The Schedule.
6 & 7 Eliz. 2. c. 30.	The Land Powers (Defence) Act 1958.	In section 6(4)(b), the words from "or which" to "1953".
7 & 8 Eliz. 2. c. 24.	The Building (Scotland) Act 1959.	In section 17(2), paragraph (d) and the words "or, as the case may be, the said Act of 1953".
1966 c. 4.	The Mines (Working Facilities and Support) Act 1966.	In section 7(8), the words from "or Part II" to "1953".
1967 c. 9.	The General Rate Act 1967.	In paragraph 2(d) of Schedule 1, the words from "is the" to "or".
1967 c. 80.	The Criminal Justice Act 1967.	In Schedule 3, the entries relating to the Ancient Monuments Consolidation and Amendment Act 1913 and the Ancient Monuments Act 1931.
1968 c. 72.	The Town and Country Planning Act 1968.	Section 59.
1969 c. 30.	The Town and Country Planning (Scotland) Act 1969.	Section 59.
1971 c. 78	The Town and Country Planning Act 1971.	In Schedule 23, the entry relating to the Town and Country Planning Act 1968.
1972 c. 43.	The Field Monuments Act 1972.	The whole Act.

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Chapter	Short Title	Extent of Repeal
1972 c. 52.	The Town and Country Planning (Scotland) Act 1972.	In Schedule 21, the entry relating to the Town and Country Planning (Scotland) Act 1969.
1973 c. 65.	The Local Government (Scotland) Act 1973.	In Schedule 23, paragraph 1.
1974 c. 32.	The Town and Country Amenities Act 1974.	In section 13(1) paragraph (c) and the word "and" immediately preceding that paragraph.
1976 c. 57.	The Local Government (Miscellaneous Provisions) Act 1976.	In Schedule 1, paragraph 5.
1976 c. 75.	The Development of Rural Wales Act 1976.	In Schedule 4, paragraph 5.
1978 c. 52.	The Wales Act 1978.	In Schedule 11, paragraph 2.

Nothing in this Schedule shall affect the operation of any enactment in relation to a monument to which paragraph 1(1) of Schedule 3 to this Act applies.